



Tort Law (9th edn)

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## p. 481 17. Defamation

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### Abstract

This chapter discusses the tort of defamation. This area of law has undergone significant legislative change following the enactment of the Defamation Act 2013. The chapter considers the elements to a claim in defamation and key defences, including honest opinion, publication on a matter of public interest and privilege (where the statement is made in the performance of a duty). Remedies include an injunction to prevent publication, and a permanent injunction to prevent further publication and damages.

**Keywords:** tort law, Defamation Act 2013, libel, slander, defences, remedies

### Problem question

**Read this problem question carefully and keep it in mind while you are working through the chapter that follows. At the end of the chapter you will be able to apply what you have learnt to the problem question and advise the relevant parties.**

The latest edition of *The Horsechester News*, the student newspaper, arrives on the Horsechester University campus. The front-page headline is 'Suspected sex offender caught!' To one side of the headline is a large photo of Maverick, a senior law professor at Horsechester University. In fact, Maverick is not the suspect described in the headline, as the detail of the story makes clear, and his photo is on the front page only because there is a lengthy interview with him inside the newspaper. But a number of students see the headline and picture without reading the story and think that the headline refers to Maverick.

On seeing the headline, Kit messages her tort law WhatsApp group ‘Why is Top Gun trending? \*Innocent face\*’.<sup>1</sup> The group has 130 members.

In the interview published in the newspaper, Maverick reflects on his career. He recounts how Bruno, the head of the law department when he first joined Horsechester University, ‘was an outstanding scholar, which is all the more remarkable considering that he seemed to be drunk half the time’. Maverick is less complimentary about some of his colleagues: ‘the lecturers appointed in the 1990s were, without exception, unequivocally useless’. Raya, one of the ten law lecturers appointed in the 1990s, is unhappy about how this comment reflects on her.

Discuss any possible claims that may be brought by Maverick, Bruno, Kit and Raya.

## p. 482 17.1 Introduction

Consider the following examples:

- *A national newspaper suggests that a well-known public figure has ‘cynically’ tried to manipulate public opinion following a very public falling out with his family.*
- *A newly married TV presenter is revealed live on-air by her co-presenter as having had an affair with her dance partner while filming a TV show.*
- *A TV ‘self-help’ guru is accused of plagiarism.*
- *The CEO of a multinational company is ‘exposed’ as engaging in sadomasochistic sexual activities with allegedly fascist overtones.*
- *A presenter on BBC Radio 5’s Test Match Special accuses an England cricketer of fixing matches in return for significant sums of money.*

In each of these examples there is a potential claim in the tort of defamation. In contrast with, say, the torts of trespass to the person and negligence, which protect an individual’s bodily or physical integrity, defamation protects a person’s reputation. The law of defamation enables an individual (or, more controversially, a company) to prevent the publication of, or recover damages for, public statements which make, or are likely to make, people think less of them. As such, many of the cases involve people in the public eye—celebrities, politicians and so on—and/or multinational corporations who are inevitably not only more aware of, but perhaps have a greater interest in, what other people think of them. However, defamation is not a tort exclusively for the rich and famous—we all have an interest in our reputation being maintained. The principles of defamation are applicable to everyone—though the high costs of bringing a claim, combined with the absence of legal aid to support such claims, may mean that its universality is more theoretical than real.

## The torts of defamation: libel and slander

While we might refer to the (singular) tort of defamation, it comes in two forms: libel and slander. A distinction is drawn at common law between libel (a defamatory statement in permanent form, typically writing, but also including, for example, 'a statue, a caricature, an effigy, chalk marks on a wall, signs, or pictures' (*Monson v Tussauds Ltd* [1894] at 692)) and slander (statements that are temporary or transitory, usually speech but also mimicry, gestures and sign language). The test is one of 'permanence' rather than form.<sup>2</sup> Thus, not all spoken insults or 'speech' are treated as slander—for example, defamatory song lyrics are libellous, despite the fact they are spoken. Ultimately, the question of classification is largely a matter of common sense. Clearly, there are ↵ borderline cases—an insult written in sand on a beach, for example. However, such cases arise more often in the imagination of tort textbook writers than in the courtroom.<sup>3</sup>

Although the distinction between the torts of libel and slander had long been criticised as an unnecessarily historical relic,<sup>4</sup> the Defamation Act 2013 did not abolish it. Rather, section 1(1) makes clear that in *all* cases of defamation the claimant needs to demonstrate that the publication of the defamatory statement has 'caused or is likely to cause serious harm'—or injury—'to the reputation of the claimant'. And that, on top of this, in the case of slander the claimant must demonstrate some sort of material loss flowing from this (mirroring the common law position): for example, by losing money as a result of being shunned by business clients—with the exception of cases of imputation of criminal conduct and incompetence in business dealings where, reflecting the previous common law position, there is no need to demonstrate special damage.<sup>5</sup>

In the tort of defamation an individual's reputation is said to be pitted against freedom of expression. At its heart lies the question as to when an individual's interest in what people think of them should trump or silence the freedom of others to be able to say what they know, or think they know, about them. Freedom of expression is considered so important that (in contrast with one's interest in one's reputation) it is protected under the European Convention on Human Rights (ECHR) and the Human Rights Act 1998. However, as both make clear, one's right to freedom of expression is not unlimited. Individuals do not have complete freedom to say whatever they like, whenever they like. Article 10(2) provides that an individual's ability to exercise this right can be restricted in the interests of a democratic society including 'for the protection of the rights and freedoms of others'. Accordingly, one of the fundamental questions that the tort of defamation has to resolve is where to strike the balance between the right to freedom of expression and an individual's desire to protect their reputation.

Inevitably there is disagreement as to whether and when the courts have struck the right balance. Certainly there are examples where defamation has been used by individuals and companies to suppress criticism with disquieting effect. And, certainly, until relatively recently the tort of defamation essentially allowed an individual to sue another who said *anything* that might make a third party think less of the claimant without

having to show that what was said was untrue, that it caused them harm or that the speaker was unreasonable or at fault. This has now changed. Section 1 of the Defamation Act 2013 introduced a 'serious harm' requirement intended to ensure that only the most egregious cases are brought.<sup>6</sup>

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### Pause for reflection

Despite the changes introduced by the 2013 Act, the tort of defamation provides an individual or company with relatively heavy-duty tools with which to protect their reputation against another's fundamental right to free speech and expression. However, does an individual's reputation really require this much protection? Tony Weir suggests:

[T]he protection may be thought to be all the odder in that the only kinds of harm apt to result from being badmouthed are emotional upset and financial loss, neither of which is very readily redressed in the law even where the defendant's negligence has been demonstrated.<sup>7</sup>

Do you agree? Think again about the purposes of tort law (discussed in **section 1.3**).

The Defamation Act 2013 was the result of a long campaign arguing that the common law on defamation was not fit for purpose. The Act was touted as turning 'English libel laws from an international laughing stock to an international blueprint'.<sup>8</sup> Certainly the Act introduced wide-ranging reforms including the seriousness threshold, 'new' statutory defences of responsible publication on matters of public interest, truth (replacing the common law defence of justification) and honest opinion (replacing the common law defence of honest comment) as well as changes to the multiple publication rule and measures designed to inhibit so-called 'libel tourism'.

Crucially, however, the Act did not *replace* the common law (in the sense that the earlier common law is now irrelevant). The Act not only develops many common law principles but is intended (in places) to *mirror* the previous common law position. The Act, to adopt Matthew Collins's analogy, is:

Frankenstein's monster: countless complications and piecemeal reforms riveted to the rusting hulk of a centuries' old cause of action ... No-one [he concludes] starting from scratch, would devise defamation laws of the kind with which England and Wales, and the rest of the common law world, have been saddled.<sup>9</sup>

What this means for our purposes is that it is necessary to understand *both* the common law and new Act.<sup>10</sup>

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## 17.2 Establishing a claim in defamation

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In order to establish a claim in the tort of defamation four questions need to be addressed:

- (1) Is the statement defamatory?
- (2) Does the statement refer to the claimant?
- (3) Has the statement been published or communicated to a third party?
- (4) Are there any applicable defences?

We shall take each question in turn. However, before we do so there is one further point to address: who can bring a claim in defamation.

### 17.2.1 Who can sue?

A defamation claim can be brought by any living human being. Whatever other reasons there may be for adhering to the old adage not to speak ill of the dead, the fear of a defamation claim is not one of them—an action does not survive the death of either party (Law Reform (Miscellaneous Provisions) Act 1934, s 1(1)). More controversially, companies are also able to bring a defamation claim (*South Hetton Coal Co v North-Eastern News Association Ltd* [1894]). After all, as Lord Bingham noted in *Jameel v Wall Street Journal Europe* [2007], they too have a reputation to protect:

the good name of a company, as that of an individual, is a thing of value. A damaging libel may lower its standing in the eyes of the public and even its own staff and make people less ready to deal with it, less willing and less proud to work for it ... I find nothing repugnant in the notion that this is a value which the law should protect. (at [26])<sup>11</sup>

This may be true. However, it is not immediately obvious why a company's reputation needs quite *as much* protection as that of an individual. This has been (partly) addressed in section 1 of the Defamation Act 2013. As with any other defamation claimant, a company (or any other 'body that trades for profit') now needs to establish that the defamatory statement has caused, or is likely to cause, 'serious harm' to its reputation (discussed in **section 17.3**). In addition, section 1(2) requires that, in relation to companies, this harm is manifested as 'serious *financial* loss' (rather than, say, the company's goodwill or public image). Though, in truth, this is not a particularly high hurdle—not least because it extends to potential (as well as actual) losses.<sup>12</sup>

Others go even further and argue that companies should not be able to bring defamation claims *at all*. Allowing them to do so, it is suggested, ignores the power of big business and can have a 'chilling effect' upon potential critics and challengers.<sup>13</sup> Limiting companies' ability to claim in defamation would, it is argued, be in line with the decision in *Derbyshire County Council v Times Newspapers Ltd* [1993] in which the House of Lords recognised that restricting an individual's ability to openly criticise national and local government would be contrary to the democratic process and would 'place an undesirable fetter on freedom of speech' (at 549).

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## ***Derbyshire County Council v Times Newspapers Ltd* [1993] AC 534 (HL)**

Derbyshire County Council sued *The Times* newspaper over two articles which had questioned the propriety of its financial dealings. However, before the case could proceed, the court had first to decide whether the council was able to bring an action. The House of Lords unanimously held that the council was unable to sue in defamation:

It is of the highest public importance that a democratically elected governmental body, or indeed any governmental body, should be open to uninhibited public criticism. The threat of a civil action for defamation must inevitably have an inhibiting effect on freedom of speech. (Lord Keith at 547)

The reasoning in *Derbyshire* was applied to political parties in *Goldsmith v Bhoyrul* [1997]. However, crucially, these decisions do not prevent politicians and parliamentarians from bringing defamation claims (see e.g. Lord McAlpine's defamation claims against a number of high-profile tweeters, including comedian Alan Davies and Sally Bercow, for tweets linking him to child sex abuse).<sup>14</sup> An argument can be made that this ability to bring, or threaten to bring, defamation proceedings has the same 'chilling effect' on political debate and commentary and that, at least in relation to comments about their performance as MPs, this should similarly be restricted.<sup>15</sup>

The 2013 Act introduced a further restriction on who can sue. Purporting to address so-called 'libel tourism',<sup>16</sup> section 9 of the Defamation Act 2013 creates a 'threshold test' for actions against non-domiciled persons (i.e. persons not living in the UK, EU or in a Lugano Convention state). In such cases, the courts in England and Wales lack jurisdiction unless they are 'satisfied that, of all the places in the world in which the statement complained of has been published, England and Wales is clearly the most appropriate place in which to bring an action in respect of the statement' (s 9(2); *Wright v Ver* [2020]).

Test your understanding by trying this section's self-test questions <<https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-self-test-questions-17-2>>.

### p. 487 **17.3 Is the statement defamatory?**

A statement is defamatory if it is likely to make others think less of the person referred to: the words or statement must tend to 'lower the claimant in the estimation of right-thinking members of society in general', causing them to be shunned or avoided (*Sim v Stretch* [1936] at 1240). The meaning of the defamatory statement is not, then, that which the claimant—or even the defendant—may actually have attached to it, but rather that derived from an objective assessment to be determined by 'right-thinking

members of society'. But who are these right-thinking members of society? The answer, of course, is the ubiquitous reasonable person—here the reasonable reader, viewer or listener—described by Lord Reid in *Lewis v Daily Telegraph* [1964] as 'someone who is fair-minded, who is not avid for scandal, nor overly suspicious nor unduly naïve, nor bound to select one defamatory meaning when non-defamatory meanings are possible' (at 260).

This is a relatively low threshold. Where a statement, for example, suggests that the claimant has broken or ignored the beliefs or practices of a particular group to which they belong, it is the implication of hypocrisy or disloyalty which is actionable, even if the ordinary person is indifferent to the claims made in the original statement. And so while to suggest that someone places the occasional bet is not in itself defamatory, to suggest this of a local vicar who has campaigned vociferously against a new bingo hall may be. The point here is not whether people generally think badly of occasional gamblers, but rather the implication of double standards which could have a significant negative impact on an individual's reputation.<sup>17</sup>

## Counterpoint

The tort of defamation treads a thin line. There are certain things which in the eyes of most 'right-minded people' will not lower their estimation of an individual. Being gay, for example, or having been raped or having a serious contagious illness or disease, no longer will (or should) make people generally think badly of the person involved.<sup>18</sup> The claimant—and then the law—is faced with a problem. While such allegations *should not* be considered damaging, and in the minds of properly *right-thinking* people *are not*, sadly they often are. Not all people are right-minded (however much we might wish otherwise). Given this, statements which should not negatively impact on people's views of the claimant will nonetheless do so, sometimes seriously. The dilemma here is that if we take the requirement that the statement must lower the claimant's standing in the eyes of right-minded people seriously, there will be situations where ↵ a claimant's reputation is unfairly damaged but for which the law provides no remedy. However, if the law is to recognise a claim in these circumstances then the law risks lending its support to the view that being gay, having been raped, suffering from a serious contagious illness and the like are negative attributes.

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Historically, libel was actionable *per se*. While the courts had gone some way in 'raising the bar' to restrict claims by adding a 'seriousness' requirement to considerations as to whether a statement is defamatory (*Jameel v Dow Jones & Co Inc* [2005]; *Thornton v Telegraph Media Group Ltd* [2010]), section 1(1) of the Defamation Act 2013 raises it further still. A defamatory statement is only actionable if it causes, or is likely to cause, serious harm to the claimant's reputation. As with any new statutory requirement, there has been a period of 'bedding in' as judges interpret and apply it and the interpretation of section 1 finally reached the Supreme Court in *Lachaux v Independent Print Ltd* [2019].



## ***Lachaux v Independent Print Ltd* [2019] UKSC 27 (SC)**

The case involved a series of articles published in *The Independent*, *i*, the *Evening Standard* and *Huffington Post*, about events that had taken place in the United Arab Emirates, including details of allegations that the claimant had kidnapped his and his ex-wife's son, as well as allegations of domestic violence made by the claimant's ex-wife. In the High Court, Warby J held that Lachaux had demonstrated, by evidence, that the harm caused by the defamatory publications complained of was 'serious', within the meaning of section 1(1). The Court of Appeal, while agreeing with Warby J's conclusion on the substance of the case, thought that he had gone too far in his interpretation of 'serious harm'. The question for the Supreme Court was therefore how section 1(1) should be interpreted.

Unanimously dismissing the newspapers' appeal, the Supreme Court held that section 1:

not only raises the threshold of seriousness above that envisaged in *Jameel (Yousef)* and *Thornton*, but requires its application to be determined by reference to the actual facts about its impact and not just to the meaning of the words. (at [12])

To find otherwise, Lord Sumption continued, would mean that section 1 did nothing to alter the common law, which was clearly contrary to Parliament's intention:

[S]ection 1 necessarily means that a statement which would previously have been regarded as defamatory, because of its inherent tendency to cause some harm to reputation, is not to be so regarded unless it 'has caused or is likely to cause' harm which is 'serious'. The reference to a situation where the statement 'has caused' serious harm is to the consequences of the publication, and not the publication itself. It points to some historic harm, which is shown to have actually occurred. This is a proposition of fact which can be established only by reference to the impact which the statement is shown actually to have had. It depends on a combination of the inherent tendency of the words and their actual impact on those to whom they were communicated. (at [14])

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↪ On the facts, the court largely adopted Warby J's approach to determining whether the harm caused, or likely to be caused, was 'serious':



[Warby J] based his finding of serious harm on (i) the scale of the publications; (ii) the fact that the statements complained of had come to the attention of at least one identifiable person in the United Kingdom who knew Mr Lachaux and (iii) that they were likely to have come to the attention of others who either knew him or would come to know him in future; and (iv) the gravity of the statements themselves, according to the meaning attributed to them. ... Mr Lachaux would have been entitled to produce evidence from those who had read the statements about its impact on them. But I do not accept, any more than the judge did, that his case must necessarily fail for want of such evidence. The judge's finding was based on a combination of the meaning of the words, the situation of Mr Lachaux, the circumstances of publication and the inherent probabilities. There is no reason why inferences of fact as to the seriousness of the harm done to Mr Lachaux's reputation should not be drawn from considerations of this kind.<sup>19</sup>

In deciding whether the statement is defamatory, the courts will look at the statements in context including the scale of the publications, actual and potential readership (and their relationship to the claimant) and the gravity of the statements themselves.<sup>20</sup> It is not enough for the claimant to point to the headline or a particular sentence or paragraph in isolation from the piece as a whole in order to ground a claim. As Nicklin J noted in *Koutsogiannis v The Random House Group Ltd* [2019]:

The publication must be read as a whole, and any 'bane and antidote' taken together. Sometimes, the context will clothe the words in a more serious defamatory meaning (for example the classic 'rogues' gallery' case). In other cases, the context will weaken (even extinguish altogether) the defamatory meaning that the words would bear if they were read in isolation (e.g. bane and antidote cases). (at [12])

These 'well-established and uncontroversial principles' were applied in *Riley v Murray* [2022].

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### ***Riley v Murray* [2022] EWCA Civ 1146 (CA)**

The case involved a series of tweets by Rachel Riley, a well-known TV personality (who has spoken publicly to condemn what she regards as the fostering of anti-Semitism in the Labour Party under its former leader, Jeremy Corbyn), Owen Jones, a *Guardian* journalist, and the defendant, Murray, who worked in Corbyn's political office. In January 2019, Jones had posted a tweet in response to an egg being thrown at Nick Griffin, the former leader of the British National Party: '... I think sound life advice is, if you don't want eggs thrown at you, don't be a Nazi. Seems fair to me'. Following a report that an egg had been thrown at Corbyn, Riley screenshot Jones's tweet and posted it with the comment 'Good advice', accompanied by pictures of a red rose and an egg. This was subsequently referred to as the 'Good Advice Tweet'. The defendant responded with the following tweet:

Today Jeremy Corbyn went to his local mosque for Visit My Mosque Day, and was attacked by a Brexiteer. Rachel Riley tweets that Corbyn deserves to be violently attacked because he is a Nazi. This woman is as dangerous as she is stupid. Nobody should engage with her. Ever.

This was held to be defamatory. The Court of Appeal, agreeing with the determination of Nicklin J, held:

An important aspect of these for present purposes is the ‘single meaning rule’ explained in *Koutsogiannis* [(at [11])]:–

The Court’s task is to determine the single natural and ordinary meaning of the words complained of, which is the meaning that the hypothetical reasonable reader would understand the words bear. It is well recognised that there is an artificiality in this process because individual readers may understand words in different ways: *Slim v Daily Telegraph Ltd* [1968] ...

The process of identifying the single natural and ordinary meaning of a statement is an objective one. The intention of the publisher is irrelevant and no evidence is admissible other than the publication complained of itself ...

Applying these principles Nicklin J determined that:

- (i) The natural and ordinary meaning of the tweet is:
  - (1) Jeremy Corbyn had been attacked when he visited a mosque.
  - (2) The claimant had publicly stated in a tweet that he deserved to be violently attacked.
  - (3) By so doing, the claimant has shown herself to be a dangerous and stupid person who risked inciting unlawful violence. People should not engage with her.
- (ii) Paragraphs (1) and (2) are statements of fact. Paragraph (3) is an expression of opinion.
- (iii) Paragraphs (2) and (3) are defamatory at common law. (Warby LJ at [11]–[13])

The Court of Appeal also upheld Nicklin J’s findings in relation to the statutory defences of truth, honest opinion and publication on a matter of public interest. Riley’s original award of £10,000, which had been reduced by the trial judge to reflect the ‘provocative, even mischievous’ nature of her conduct in posting her Good Advice Tweet, was upheld (at [16]).

p. 491 ↪ In *Charleston v News Group Newspapers Ltd* [1995] the House of Lords held that the defendants were not liable in defamation for an article featuring degrading, faked photographs of the claimants—two popular Australian TV soap actors in the early 1990s—as the accompanying text made it clear that the photographs were not real. The decision as to whether the material was capable of being defamatory must be determined according to the meaning an ordinary, reasonable, fair-minded reader would understand from it, rather than on its effect on a sub-group of limited readers who looked only at pictures and headlines.<sup>21</sup>

More recently, in *Spicer v Commissioner of Police of the Metropolis* [2019] the headline on the Metropolitan Police website stating ‘Two guilty of killing a woman while racing their cars’ was not found to be defamatory against the driver of one of the cars who had been acquitted of causing death and causing injury by dangerous driving:

The headline is inconsistent with the text. It is not true that two men were ‘guilty of killing a woman’. But ordinary reasonable readers would not allow the headline to distort the meaning they took from the article as a whole. Readers are familiar with discordance between headlines and articles. Here, the more detailed explanation of events was in the article itself. It clearly stated that one man had been convicted of killing and another acquitted. Reading the headline and article together a reasonable reader would conclude that the headline was wrong. Some readers might think this odd, or sloppy, and move on. Discordance between headline and text is hardly unknown. But whatever conclusion (if any) the reader drew about the reasons for it, I am confident the reader would not see the claimant as a convicted killer. (Warby J at [35])

But what about where the meaning of the potentially defamatory statement is unclear? How should a judge go about determining the meaning of what has been said?

### ***Stocker v Stocker* [2019] UKSC 17 (SC)**

The defendant, Nicola Stocker, had posted a number of comments on the Facebook wall of her ex-husband’s new partner in which she claimed her ex-husband, Ronald Stocker, had ‘tried to strangle me’. She also made a number of allegations about threats, ‘gun issues’ and the breach of a non-molestation order, all of which contributed a ‘picture of acute marital breakdown’ (at [4]). Mr Stocker began proceedings against her for defamation. The question for the court was what the words ‘He tried to strangle me’ conveyed to the ‘ordinary reasonable reader’ of a Facebook post? (at [1]).

At trial (finding for Mr Stocker) the judge, Mitting J, relied (in error) on the Oxford English Dictionary in his determination of meaning: either Mr Stocker had tried to kill his wife, or he had constricted her neck or throat painfully. On this view, the fact that Mrs Stocker said that her husband had tried to strangle her precluded the possibility of the latter meaning ↪ being attributed (as he had in fact done this): the only possible meaning of Mrs Stocker’s posts was that Mr Stocker had tried to kill her, something which Mrs Stocker was unable to justify.

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Despite his success in the lower courts, Mr Stocker lost in the Supreme Court. The trial judge, a unanimous Supreme Court held, had simply got it wrong in law:

Mitting J fell into legal error by relying upon the dictionary definition of the verb ‘to strangle’ as dictating the meaning of Mrs Stocker’s Facebook post, rather than as (as Sharp LJ [in the Court of Appeal] suggested) a check. In consequence, he failed to conduct a realistic exploration of how the ordinary reader of the post would have understood it. Readers of Facebook posts do not subject them to close analysis. They do not have someone by their side pointing out the possible meanings that might, theoretically, be given to the post. ... Taking a broad, overarching view, and keeping in mind that only one meaning could be chosen, the choice to be made between the meaning of the words being that Mr Stocker grasped his wife by the neck or that he tried to kill her is, in my opinion, a clear one. If Mrs Stocker had meant to convey that her husband had attempted to kill her, why would she not say so explicitly? And, given that she made no such allegation, what would the ordinary reasonable reader, the casual viewer of this Facebook post, think that it meant? In my view, giving due consideration to the context in which the message was posted, the interpretation that Mr Stocker had grasped his wife by the neck is the obvious, indeed the inescapable, choice of meaning. (Lord Kerr at [47]–[48])

Lord Kerr went on to consider the defence of justification<sup>22</sup>:

In light of my conclusion as to the correct meaning to be given to the words, ‘tried to strangle me’, section 5 of the Defamation Act 1952<sup>23</sup> must occupy centre stage. It is beyond dispute that Mr Stocker grasped his wife by the throat so tightly as to leave red marks on her neck visible to police officers two hours after the attack on her took place. It is not disputed that he breached a non-molestation order. Nor has it been asserted that he did not utter threats to Mrs Stocker. Many would consider these to be sufficient to establish that he was a dangerous and disreputable man, which is the justification which Mrs Stocker sought to establish. ... Even if all her allegations were considered not to have been established to the letter, there is more than enough to satisfy the provision in section 5 of the 1952 Act that her defence of justification should not fail by reason only that the truth of every charge is not proved, having regard to the truth of what has been proved. (at [61]–[62])

### Pause for reflection

↵ In the age of #MeToo, traditional and social media have become an important way for women (and some men) to expose, challenge and seek acknowledgement for harms they have suffered. In a world where we continue to see high levels of sexism, misogyny and systemic institutional failings—

not least within the legal system itself—the media has played a vital role in validating the remarkably similar stories of routine violence and abuse perpetrated on women in the workplace, on the streets and in their homes. Public reporting of all forms of violence against women and girls (VAWG) can not only lead to investigation and redress for individuals concerned, it can also encourage other victims to come forward, contributing to a much-needed overthrow of public stereotypes, myths and attitudes surrounding violence against women.<sup>24</sup>

However, lined up against this is the full force of defamation laws, non-disclosure agreements and super-injunctions which remain usually, though not always, in the hands of rich men.<sup>25</sup> Harriet Wistrich, from the Centre for Women's Justice, has suggested that what we are seeing is:

a worrying trend where wealthy men who are accused of abuse are able to buy victims' silence.<sup>26</sup> Libel proceedings are extremely costly and few can risk speaking out for fear of punitive costs awards against them despite the huge public interest in exposing serious wrongdoing. In libel, serious harm to reputation seems to be valued more highly than the serious harm of violence against women that may be exposed by victims speaking out.<sup>27</sup>

So viewed, cases like *Stocker* then are about far more than statutory interpretation. They are about (abuse of) power. They are about freedom of expression. They are about the role of the media in aiding—and hindering—the pursuit of justice.

p. 494 ↩ In 2021, UN special rapporteur on the promotion and protection of the right to freedom of opinion and expression, Irene Khan, noted that, '[i]n a perverse twist in the #MeToo age' the justice system is increasingly being 'weaponized ... to silence women': women who publicly denounce alleged perpetrators of sexual violence online are increasingly subject to defamation suits.<sup>28</sup>

In our video 'Where money talks: defamation, sexual violence and gendered power' we explore this further, focusing on another key characteristics of many of these cases: the wealth of the defendant. Is it that, when it comes to bringing a defamation case in the context of sexual violence, money talks?

Video playback is not supported in this format.

**Video 17:** Where money talks: defamation, sexual violence and gendered power

It is also no excuse for the defendant to say that they did not intend the words to be defamatory (although intention may be relevant to possible defences and may reduce the award of damages). The tort of defamation protects an individual's reputation, and a statement can damage an individual's reputation, even where it turns out that the defendant did not mean what they said. However, a defendant may argue that the words were 'mere abuse', uttered in rage and not intended to be taken seriously. Mere abuse is not (usually)

defamatory. The line between mere abuse and a defamatory statement is a fine one. In *Berkoff v Burchill* [1996], for example, Steven Berkoff, an actor and film director, sued Julie Burchill, a well-known journalist, for libel over two comments made about him in her column in the *Sunday Times* in which she referred to him as ‘hideously ugly’ and, on the second occasion, a review of a production of *Frankenstein* compared him to *Frankenstein’s* monster. The defendants argued that the essence of the tort of defamation was damage to reputation, not hurt feelings or annoyance, and that while the statement may have caused the latter, it had not caused the former. This was rejected by the majority of the Court of Appeal. Holding that the word ‘reputation’ is to be interpreted ‘in the broad sense as comprehending all aspects of a person’s standing in the community’ (at 151), Neill LJ went on to hold that the words ‘hideously ugly’ could be defamatory ‘even though they neither impute disgraceful conduct to the [claimant] nor any lack of skill or efficiency in the conduct of his trade or business or professional activity, if they hold him up to contempt, scorn, or ridicule or tend to exclude him from society’ (at 146).<sup>29</sup> Millett LJ dissented, pointing out that Burchill’s words were an attack on Berkoff’s *appearance* rather than reputation. Burchill had simply made a cheap joke at Berkoff’s expense: ‘it is [he argued] one thing to ridicule a man; it is another to expose him to ridicule ... people must be able to poke fun at each other without fear of litigation’ (at 153).

More recently in *Vine v Barton* [2024], a series of posts by former Premier League footballer, Joey Barton, on X calling radio and TV presenter Jeremy Vine a ‘bike nonce’ and ‘pedo defender’ were held to be defamatory and not—as Barton contended—‘mere vulgar abuse’: ‘The hypothetical reader would not have gained the impression that this was meaningless invective hurled in the heat of the moment’ but rather that ‘the claimant has a sexual interest in children, and he defends paedophiles’ (Steyn J at [58], [202]).

### p. 495 17.3.1 Innuendo

The tort of defamation is not confined to openly defamatory statements. This makes sense—were the law otherwise it would be possible to frame an attack on an individual’s reputation indirectly, in the knowledge that they would be unable to do anything about it. The detrimental impact on a person’s reputation is the same whether one says ‘there was a miscarriage of justice when X was cleared of murder’ or ‘X is a murderer’ (*Lewis v Daily Telegraph* [1964] at 258).

#### ***Monson v Tussauds Ltd* [1894] QB 671 (CA)**

The claimant had been tried for murder in Scotland and released on a verdict of ‘Not Proven’, a form of acquittal. The defendants placed a waxwork of the claimant with a gun in a room adjoining the ‘Chamber of Horrors’. The Court of Appeal held that the scene was capable of being defamatory.

These implied or veiled attacks on someone’s reputation are called innuendo. Innuendo is a mechanism through which the courts are able to attribute to a statement its *legal* meaning. It typically arises in relation to statements that do not appear defamatory, but which, because of background knowledge or information,

nevertheless make people think worse of the claimant. The test for determining whether the ascribed meaning is capable of being defamatory remains an objective one: what view would right-thinking people knowing the additional information make of the statement?

Traditionally there are said to be two types of innuendo, although the line between them may, at times, be difficult to draw:

- (1) false or popular innuendo—where the reader needs to simply read between the lines to uncover the true meaning of the defamatory statement;
- (2) true or legal innuendo—where the defamatory nature of the statement is not apparent on its face but depends on facts or circumstances known to those to whom the statement is published.

An example of false or popular innuendo can be seen in *Lewis v Daily Telegraph* [1964]. The *Daily Telegraph* reported that the company (of which Lewis was the chairman) was being investigated by the Fraud Squad. It included reference to the claimant's name. After the investigation the company was absolved of all wrongdoing. The claimant sued in defamation claiming that ordinary readers would 'read between the lines' and assume that the company's affairs had been conducted dishonestly. The defendants admitted the articles were defamatory, but argued that they didn't go so far as to include actual guilt of fraud and so could be defended on the grounds of truth. The majority of the House of Lords agreed:

[w]hat the ordinary man, not avid for scandal, would read into the words complained of must be a matter of impression. I can only say that I do not think that he would infer guilt of fraud merely because an inquiry is on foot. (Lord Reid at 260)

Indeed, were it otherwise it would be impossible to report any criminal investigation.

p. 496 ↩ Legal or true innuendo relies on some additional information known only to those to whom the statement is published. So, for example, the statement that the claimant 'is no Florence Nightingale' might imply to the ordinary reader that the claimant lacks compassion—as Florence Nightingale is well known for her compassion—whereas to say that the claimant was seen having an intimate dinner with her dance partner is not in itself defamatory, it becomes so only in relation to people who know that she is recently married, to whom it might carry the implication that she is having an affair (see e.g. *Fullam v Newcastle Chronicle & Journal Ltd* [1977]).

A discussion of innuendo arose in the context of a high-profile 'Twibel' (Twitter libel) case involving a defamatory tweet sent by Sally Bercow about former Deputy Chairman and Treasurer of the Conservative Party, Lord McAlpine (*McAlpine v Bercow* [2013]).



## ***McAlpine v Bercow* [2013] EWHC 1342 (QB)**

In November 2012, the defendant sent a tweet: 'Why is Lord McAlpine trending? \*Innocent face\*'. At the time, Bercow had over 56,000 followers. It followed a BBC *Newsnight* report which included a serious allegation of child abuse and references to 'a leading Conservative politician from the Thatcher years' and 'a prominent Tory politician at the time'. Following the broadcast there was intense media speculation as to the politician's identity, as well as on Twitter which led to McAlpine's name 'trending'. Unfortunately, it was a case of mistaken identity: it was quickly accepted that Lord McAlpine was entirely innocent.

In deciding the meaning of the tweet, Tugendhat J stated:

In respect of an innuendo meaning, a claimant must, in addition to identifying the meaning complained of, prove the extrinsic facts relied upon and prove that these facts were known to readers ... The claimant will have been defamed in the minds of those readers, but not in the minds of the readers who did not know the extrinsic facts. (at [50])

He continued:

The legal principles to be applied when determining the question of meaning are in part derived from the [*Lewis v Daily Telegraph*] case. They were summarised by Sir Anthony Clarke MR in *Jeynes v News Magazines Ltd* [2008] at [14]–[15] (where 'he' means 'he or she'):

The legal principles relevant to meaning have been summarised many times and are not in dispute. ... They may be summarised in this way: (1) The governing principle is reasonableness. (2) The hypothetical reasonable reader is not naïve but he is not unduly suspicious. He can read between the lines. He can read in an implication more readily than a lawyer and may indulge in a certain amount of loose thinking but he must be treated as being a man who is not avid for scandal and someone who does not, and should not, select one bad meaning where other non-defamatory meanings are available. (3) Over-elaborate analysis is best avoided. (4) The intention of the publisher is irrelevant. (5) The article must be read as a whole, and any 'bane and antidote' taken together. (6) The hypothetical reader is taken to be representative of those who would read the publication in question.

✦ It is important in this case to stress point (6). The tweet was not a publication to the world at large, such as a daily newspaper or broadcast. It was a publication on Twitter. The hypothetical reader must be taken to be a reasonable representative of users of Twitter who follow the Defendant. (at [57]–[58])

Tugendhat J rejected the defendant's claim that she was simply asking for information, and found that the tweet meant 'in its natural and ordinary defamatory meaning, that the claimant was a paedophile who was guilty of sexually abusing boys living in care' (at [90]). However, he continued, 'If I were wrong about that, I would find that the tweet bore an innuendo meaning to the same effect. But if it is an innuendo meaning it is one that was understood by that small number of readers who, before reading the tweet on 4 November, either remembered, or had learnt, that the Claimant had been a prominent Conservative politician in the Thatcher years' (at [91]), that is to those people who had the *additional* knowledge to interpret the meaning of the tweet.<sup>30</sup>

The defendant later apologised for her 'irresponsible use of Twitter' and agreed to pay the claimant undisclosed damages.

Test your understanding by trying this section's self-test questions. <<https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-self-test-questions-17-3>>.

### 17.4 Does the statement refer to the claimant?

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The defamatory statement must refer to the claimant. The question to be asked is this: would a reasonable person understand the statement as referring to the claimant? Where the claimant is named—including by a nickname, initials or even job title (e.g. 'Home Secretary')—there is usually no difficulty. However, the more obscure the reference, the more need there is for a 'peg or pointer' in the statement itself or to be provided by the context in which the statement was made that identifies the claimant. In such cases, the test is whether the hypothetical reasonable reader, having knowledge of the circumstances, would believe that the article was referring to the claimant (*Morgan v Odhams Press Ltd* [1971]).

If the claimant is not clearly identified in the statement, and so where one would need to know certain additional background information to connect the claimant to the statement made by the defendant, the claimant must show that the statement was actually published to people who knew the additional information—that is, to people who could have made the connection between the statement and the claimant. Otherwise all there is is a statement which *might* have defamed the claimant if addressed to the right people, but which, in the end, did not.

What about statements that unintentionally refer to the claimant? For instance, certain names are common, and so a statement referring to, say, Joe Bloggs, may refer to any potential number of individuals who share that name. Can the author be liable in defamation, even where they did not intend their statement to refer to the claimant, and indeed intended it to identify someone else? The short answer is yes. The tort of defamation

p. 498 is not concerned with whether the defendant *intended* to harm an individual's reputation, but rather whether their words are capable of causing this outcome. Thus, a defendant may be liable even when they intended their statement as a piece of fiction (*Hulton & Co v Jones* [1910]).<sup>31</sup>

### ***Hulton & Co v Jones* [1910] AC 20 (HL)**

The defendants (a newspaper company) published a fictional account of a motor festival in Dieppe featuring 'Artemus Jones', a church warden from Peckham. The claimant was a barrister also called Artemus Jones. He was unknown to the author of the story and his editor (although he had once worked for the newspaper). He was not a church warden. He did not live in Peckham, nor had he attended the motor festival in Dieppe. Nevertheless, he sued in libel, claiming that a number of his friends had read the story and believed it to refer to him. The House of Lords agreed. There was sufficient evidence to suggest that a jury could reasonably conclude that a reasonable person would believe that the story referred to the claimant.

Similarly, in *Newstead v London Express Newspaper Ltd* [1940], the defendant newspaper published an account of the trial for bigamy of 'Harold Newstead, a thirty year old Camberwell man'. Unfortunately for the newspaper, this description was true of more than one man. Another Harold Newstead, a non-bigamist who also lived in Camberwell and who was about the same age as the other Harold Newstead, successfully sued for libel. Although recognising the considerable burden their decision would place on newspapers, the Court of Appeal held that it was not unreasonable, given the significant consequences for the 'wrong' man, to expect the party who publishes such statements to make sure they identify the person so closely that little or no confusion arises.<sup>32</sup>

However, not every unintentional reference will ground a claim. In *O'Shea v MGN Ltd* [2001], the *Sunday Mirror* ran an advertisement for an adult internet service featuring a model who closely resembled the claimant. O'Shea sued in libel claiming that people who did not realise that the model in the advert was not in fact her would conclude that she had consented to appear on a highly pornographic website. Rejecting her claim, Morland J held that although the image was at common law defamatory, to hold the newspaper liable in defamation would be contrary to Article 10 ECHR. Distinguishing *Hulton* and *Newstead* as cases where the claimant could have more easily been identified, Morland J suggested it would impose an 'impossible burden on a publisher if he were required to check if the true picture of someone resembled someone else who because of the context of the picture was defamed' (at [43]).

## Pause for reflection

p. 499

↪ O'Shea appears to create a distinction between unintentional defamation in photographs and unintentional defamation in writing, with only the latter being actionable. Is this distinction sustainable?

Morland J's point is that it would be virtually impossible for defendants to ensure that the individuals in photos they publish could not be wrongly identified—after all most, if not all, of us look more or less like someone else. By contrast, when writing, there is more scope for ensuring that the correct person is identified, simply by including more information. So while there may be any number of people named Joe Bloggs, there are likely to be fewer who live in, say, Oadby, Leicester, and even fewer aged 24 and so on. In the end, by providing enough information, it will be possible to ensure that no mis-identification can occur.

However, is this a realistic demand to make of publishers? Though we *could* demand that every time someone is named in a newspaper article, sufficient information is included to ensure that no one else will be wrongly identified, this would also appear to impose a significant burden on publishers, and one which jars with the demands of newspaper and television reporting. This is, of course, the point that was made and rejected in *Newstead*, where the court reasserted that liability in defamation was strict and that it was no defence that the defendant acted reasonably and never intended to identify the claimant.

But it seems to be precisely this argument that is accepted by the court in *O'Shea*. The fact that *O'Shea* concerned pictures and *Newstead* words allowed Morland J to distinguish the decision and rule in *Newstead*. However, in substance both cases seem to raise the same basic question: should a publisher who acts entirely reasonably and innocently, not intending their statement or story to identify the claimant, be held liable in defamation? It may be that mis-identification is more likely to occur where pictures are used, but, as cases such as *Newstead* show, the same problems can arise with words.

As such, to treat *O'Shea* as an exception to the general rule of strict liability, which applies to visual images only, may not be a satisfactory solution. If so, which way should the law go? Should we view *O'Shea* as wrongly decided or, alternatively, should the reasoning be extended to cases such as *Hulton* and *Newstead*? Do you think the reasoning in *Hulton* and *Newstead* would be likely to withstand an Article 10 challenge? Think again about the balance the courts need to strike between the right to freedom of expression and an individual's desire to protect their reputation.<sup>33</sup>

### 17.4.1 References to a group or class

Where the defamatory statement refers to a class or group of people, there is no liability unless the class or group is so small that the claimant can establish that the statement must apply to every member of the class or, alternatively, that the statement refers to them directly: 'In order to be actionable the defamatory words

p. 500 must be understood to be published of and ↵ concerning the [claimant]' (Lord Atkin, *Knupffer v London Express Newspaper Ltd* [1944] at 121). So, for example, the statement that 'all MPs are liars' is not actionable. However, a statement suggesting that 'all the candidates for London Mayor are corrupt'—where there were only ten people in the running—may be. While there is no clear guidance on just how small the group needs to be it is suggested that the best approach is to apply the *Hulton* test—that is, would a reasonable person believe that the statement referred to the claimant?

### ***Knupffer v London Express Newspaper Ltd* [1944] AC 116 (HL)**

During the Second World War the defendant newspaper referred to the 'quisling activities' (meaning they were colluding or sympathising with Hitler and the Nazi Party) of the Young Russian political party, Mlado Russ (or Young Russia). As there were only 24 British members of the party, the claimant, a Russian resident in London, argued that, as head of the British branch of the party, British readers would assume that the remarks referred to him.

This was rejected by the House of Lords. The article referred only to the party's activities in France and the United States. Since there were several thousand international members, there was no evidence that the claimant had been singled out: 'No doubt it is true to say that a class cannot be defamed as a class, nor can an individual be defamed by a general reference to the class to which he belongs' (Lord Porter at 124).

Test your understanding by trying this section's self-test questions. <<https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-self-test-questions-17-4>>.

## **17.5 Has the statement been 'published'?**

The third element of a claim in defamation is the requirement that the defamatory statement has been published. The term 'publication' can be misleading. The requirement is better understood as a need for 'communication'—the defamatory statement must be communicated to a third party. A private conversation or correspondence between the defendant and the claimant—however insulting or hurtful it may be to the claimant—cannot give rise to a claim in defamation.<sup>34</sup> The wrong remedied by the tort of defamation is the injury to an individual's reputation—that is, to what *others* think of them—so if no one but the claimant hears or understands what the defendant says there is no risk of this sort of harm. Though traditionally the statement need only be published to one person, this now needs to be considered in light of the section 1 'serious harm' requirement. In *Webb v Jones* [2021], the claimant failed to prove not only that a series of Facebook posts had been substantially 'published' but also that the posts had caused 'serious harm'.

The fact that the statement is visible on the internet is not enough to establish substantial publication ... [nor] ... it is ... enough that someone has read it. If the reading is so rapid and superficial as to leave no impression, or no more than a fleeting impression which is of no consequence ... Most of the reactions consisted only of an emoji click. It is not clear from the reactions or any other evidence that the person reacting knew that the claimant was the person referred to, or knew who she was. It is vanishingly unlikely, on the only evidence available or obtainable, that the claimant's reputation in the real world was damaged at all in the eyes of anyone by these posts; let alone to an extent which could conceivably be characterised as serious harm. This was confused and confusing ephemeral internet chatter, down thread, and swiftly lost in the surrounding hubbub. It is exactly the sort of case that section 1 of the Defamation Act 2013 was designed to stop. (Griffiths J at [47]–[48], [69])

## Pause for reflection

While the outcome of the case is plainly correct, as Hugh Tomlinson notes, the judge's reasoning is less convincing. In particular, the suggestion that substantial publication could not be inferred from the number of Facebook members of the group (approx 16,000) is at odds with the decision in *Stocker* where publication was accepted on the basis of visibility to 110 Facebook friends.<sup>35</sup> Similarly, Tomlinson continues, it is well established that, contrary to Griffiths J's view, serious harm can be inferred by reference to the gravity of the allegation only:

Depending on the circumstances of the case, the claimant may be able to satisfy section 1 without calling any evidence, by relying on the inferences of serious harm to reputation properly to be drawn from the level of the defamatory meaning of the words and the nature and extent of their publication (Warby J, *Doyle v Smith* [2019] at [117] referring to HHJ Moloney QC in *Theedom v Nourish Training (trading as CSP Recruitment)* [2016]).

As *Webb v Jones* demonstrates, 'publication' extends beyond the print media to include websites (*Godfrey v Demon Internet* [2001]; *Johnson v Steele* [2014]), tweets, including retweets (*Cairns v Modi* [2012]; *McAlpine v Berrow* [2013]; *Monroe v Hopkins* [2017]), blogs (*Cruddas v Adams* [2013]) and posts on Facebook (*Stocker v Stocker* [2018]). The burden falls on the claimant to prove publication and, in the context of multiple posts or tweets (or similar), whether they are 'sufficiently closely connected as to be regarded as a single publication' (Sharp J, *Dee v Telegraph Media Group Ltd* [2010] at [29]).<sup>36</sup>

But what about where the publication is unintentional? Where the defendant did not intend anyone to read/hear what they wrote/said? Here the test is one of reasonable foreseeability. If it was reasonably foreseeable that a third party would see/hear the statement the defendant will be liable (*Theaker v Richardson* [1962]).



***Theaker v Richardson* [1962] 1 WLR 151 (CA)**

The defendant wrote to the claimant accusing her of shoplifting and being ‘a very dirty whore’ and ‘a lying low-down brothel-keeping whore and thief’. He put it in an envelope on which he typed the claimant’s name and address and put it through her letter-box. Her husband opened it, thinking it was an election address. The claimant sued for libel. Allowing her claim and awarding her £500 damages, the jury found that it was reasonably foreseeable that someone other than the claimant might open the envelope.

The decision in *Theaker v Richardson* can be contrasted with that in *Huth v Huth* [1915], where a man sent his wife a letter which was defamatory of both his wife and their children. It was opened and read by the butler. The children sued (at the time, a wife was prohibited in law from suing her husband). The Court of Appeal held that it was not foreseeable that a butler would open his employer’s mail: ‘it is no part of a butler’s duties to open letters ... addressed to his master or mistress’ (Lord Reading CJ at 38). While publication can be avoided by marking the mail ‘private and confidential’, messages on the back of postcards sent through the post are always treated as published, as are documents (if read) left open, for example, on a desk (in both paper and electronic form) or dictated to a personal assistant or secretary (*Osborn v Thomas Boulter & Son* [1930]).

Conversely, it is not possible to publish information you are unaware of and have no control over. In *Bunt v Tilley* [2006], an Internet Service Provider (ISP) was held not to have ‘published’ allegedly defamatory postings made in internet chat rooms. While *Tamiz v Google Inc* [2013] suggested that, once it had been drawn to its attention, Google was the ‘second publisher’ of the blog by a third party,<sup>37</sup> the ‘operators of website’ defence in section 5 of the Defamation Act 2013 (alongside the Defamation (Operators of Websites) Regulations 2013) provide websites with complete immunity where they have in place and follow a procedure for dealing with potentially defamatory posts by third parties.<sup>38</sup>

**17.5.1 Republication**

At common law, a new cause of action arises every time a defamatory statement is republished (*Duke of Brunswick v Harmer* [1849]; confirmed by the Court of Appeal in *Banks v Cadwalladr* [2023]). A single statement may, therefore, have a number of different ‘publishers’.

Section 8 of the Defamation Act 2013 introduces an exception to this. The single publication rule introduces a 12-month limitation period, from the date of the first publication of that material to the public or a section of the public. This prevents an action being brought in relation to publication of the *same material* or a statement which is ‘substantially the same’ by the *same publisher*. The rule only applies once the material is published to the public, or a section of the public and does not apply when the defamatory material is published in a different manner (e.g. if it is moved from an obscure part of a website to the front page) or by someone else. One clear application of the rule is in relation to newspaper archives. Under the common law,



each time a user accessed an archive a new course of action arose (*Loutchansky v Times Newspapers (No 2)* [2001]). There was a concern that this was having ‘chilling effect’ restricting the creation of such archives (though a claim that this amounted to a violation of the newspaper’s Article 10 rights was rejected in *Times Newspapers (Nos 1 and 2) v UK* [2009] on the basis that the publisher could place a note warning of the veracity of the article).

But when is a statement ‘substantially’ similar enough to set the limitation clock running? In *Parish v Wikimedia Foundation, Inc* [2024], the claimant, a well-known international lawyer, sought to bring a claim in defamation for various statements which had been made over a period of time on his Wikipedia page relating to his criminal conviction. Steyn J rejected his claim finding both versions to be ‘substantially the same’ as each other:

Both versions of the Wikipedia Page refer to the conviction, the three-year prison sentence, and the ban on practising law in Switzerland. In the 10 January Wikipedia Page the arbitration is described as ‘fake’, whereas in the later version it is described as ‘fraudulent’. However, I agree with the defendant that in context this distinction is without substance. The gravamen of the offence, and the resulting sentence and ban, is precisely the same. (at 82)

And as such, the earlier version had set the clock running and so the claim—which he issued just short of a year out of time—fell outside the one-year limitation period: ‘That is a long delay in the context of a one-year limitation period imposed in recognition of the fact that normally a person whose name has been traduced can be expected to pursue legal redress promptly and energetically’ (Steyn J at [86]).

### Pause for reflection

The limitation period established by section 8 can be seen as at odds with the serious harm requirement in section 1. As Wilson et al have argued:

a claimant is required to get on and sue, but they must also show that the statement has caused or is likely to cause serious harm. In many instances they will not know what the ultimate effect of a publication will be, much less be able to foresee to what extent events will enable them to evidence it. This issue was touched upon in an abstract sense by Lord Sumption in the Supreme Court’s decision in *Lachaux* (at [18]) (though not, in our view, resolved).<sup>39</sup>

We may well, therefore, see this issue return to the courts in due course.

But what if your defamatory statement is repeated by someone else? Certainly the person repeating the statement will be potentially liable, subject to the operation of section 10 (in relation to secondary publishers) or the neutral reporting without adoption public interest defence (s 4(3)). It is no defence that defendant was

p. 504 simply repeating what someone else said. However, a person will not usually be liable for another's voluntary republication of the original publication unless: (a) they have authorised the repetition or intended that the statement ↵ be repeated (e.g. by speaking at a press conference); or (b) the person who repeated the statement was under a legal or moral duty to do so; or (c) the republication is, on the facts, reasonably foreseeable (*Slipper v BBC* [1991]).

Test your understanding by trying this section's self-test questions. <<https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-self-test-questions-17-5>>.

## 17.6 Defences

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The tort of defamation is framed very broadly. A claimant may sue in respect of any statement which might cause right-thinking people to think less of them and that is likely to cause them serious harm, irrespective of fault on the part of the defendant, whether or not the statement was intended to refer to the claimant, and—subject to a few exceptions—they can sue anyone who played a role in its publication. Liability is limited through the operation of a number of defences specific to defamation: truth, absolute and qualified privilege, honest opinion and responsible publication on a matter of public interest. In addition, there are also rules relating to the operators of websites and the defendant may, in certain circumstances, choose to apologise and make an offer of amends—rather than fight the action through the courts.<sup>40</sup> We shall look at each of these in turn.

### 17.6.1 Truth

Not all defamatory statements are untrue. Calling a thief a thief may damage their reputation but this is hardly something the thief can complain about. Unsurprisingly, therefore, it has long been the case that establishing the truth of a defamatory statement is a defence in defamation: 'the law will not permit a man to recover damages in respect of an injury to a character which he does not or ought not possess' (*McPherson v Daniels* [1829] at 272).<sup>41</sup>

p. 505 Section 2 of the Defamation Act 2013 put the common law truth defence (sometimes referred to as justification) on a statutory footing (replacing the common law). It applies to statements of fact, not opinion. The motive of the defendant is irrelevant, as is whether the statement is in the public interest. In order to rely on the defence, the defendant needs to show that the imputation of the statement is 'substantially true'. The burden of proof rests on the defendant to demonstrate that it is more likely than not that the statement was substantially true in the meaning that it bore.<sup>42</sup> It is not necessary, however, for the defendant to demonstrate that *everything* they said was true. This reflects the position at common law: ↵ 'the defendant does not have to prove that every word he/she published was true. He/she has to establish the "essential" or "substantial" truth of the sting of the libel' (Brooke LJ, *Chase v News Group Newspapers Ltd* [2002] at [34]).

However, identifying the ‘sting’ of the defamation—the imputation of the statement—can be tricky. What matters is whether the *defamation* of the defendant can be shown to be true, not whether the statement can be shown to be true in some other sense or for some other purpose. For example, in *Newstead* the statement about Harold Newstead was true of the other Harold Newstead but not the claimant. Similarly, in *Lewis v Daily Telegraph* the paper accurately reported that the company was being investigated for fraud. For the defence to succeed, it was not enough to show that there was indeed such an investigation, nor was it necessary to show that the claimant had indeed been fraudulent. Rather, what needed to be shown to be true was that right-thinking people would assume that the claimant had conducted his affairs in such a way as to raise a suspicion of fraud.<sup>43</sup>

Where a number of defamatory statements have been made the claimant may choose only to sue in relation to one. Here it seems likely that, as in the common law, the defendant will not be able to defend themselves by establishing the truth of the other claims: ‘it is no defence to a charge that “you called me A” to say “Yes, but I also called you B on the same occasion, and that was true”’ (Brooke LJ, *Cruise (and Kidman) v Express Newspapers* [1999] at 954). Though the defendant may seek to argue that together the various statements had a common ‘sting’ and that the ‘sting’ is true (*Khashoggi v IPC Magazines Ltd* [1986]).

This was one of the issues in the much-discussed *Depp II v News Group Newspapers Ltd* [2020]. Billed as the libel trial of the century (though *Vardy v Rooney* [2022] may challenge that title), it adds little to the legal development of libel law, but is nonetheless a useful example of where the truth defence has been successfully used.

### ***Depp II v News Group Newspapers Ltd* [2020] EWHC 2911 (QB)**

Johnny Depp, an American actor, sued the publisher and author of an article which made several allegations that Depp had been violent towards his ex-wife, actor Amber Heard, during their relationship. Though there was some disagreement as to meaning, it was common ground that the natural and ordinary meaning of the words complained of was that ‘(i) the claimant had committed physical violence against Ms Heard; (ii) this had caused her to suffer significant injury; and (iii) on occasion it caused Ms Heard to fear for her life’ (at [80]–[81]). Without an effective defence, the articles were clearly defamatory (at [585]).

After a 14-day trial conducted during the coronavirus pandemic, in which both Depp and Heard gave evidence in person, Nicol J reviewed each incident before ‘stepping back’ to consider the evidence ‘in a more global sense’ (at [108]). He found that 12 of the 14 incidents of assault raised at trial were proven, with the result that the defendants had ‘established the substantial truth of the words that they published in the meanings which I have held those words to bear’ (at [575]).

↪ In March 2021, the Court of Appeal refused Depp’s request to present future evidence or appeal on the basis that neither had a real prospect of success (*Depp II v News Group Newspapers Ltd* [2021]). He was ordered to make an initial payment towards costs of £630,000.<sup>44</sup>

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## Pause for reflection

Nicol J's judgment was welcomed by Refuge and other women's organisations as sending a 'powerful message':

Every single survivor of domestic abuse should be listened to and should be heard. No survivor should ever have her voice silenced. A common tactic used by perpetrators of domestic abuse is to repeatedly tell victims that no one will believe them—and to use power and control to try and silence them. What we have seen today is that power, fame and financial resources cannot be used to silence women. That is a welcome message for survivors of domestic abuse around the world.<sup>45</sup>

However, beyond the Hollywood cast, extensive media coverage and eye-watering costs, at its heart *Depp* is yet another case involving a rich, powerful man seeking to harness the might of defamation law to silence a victim-survivor of domestic abuse. As others have noted:

In this case, the defendants were able to rely Ms Heard's evidence of the abuse she endured in her marriage to Mr Depp. Without Ms Heard's participation, a [section] 2 truth defence was unlikely to succeed. Not all victims of domestic abuse will be so willing to have their private lives forensically examined in a courtroom by lawyers and available to be reported in the press and on social media.<sup>46</sup>

For some (many?) victim-survivors it is likely that this—understandably—will be too high a price to pay.

p. 507 While the onus is on the defendant to prove that the sting of a defamatory statement is true (the claimant only needs to show that the statement was defamatory, not that it was untrue), pursuing an action in defamation for something you know to be true, on the assumption that the defendant will be unable to prove it, is often a dangerous ploy—as Oscar Wilde, Jonathan Aitken, Neil Hamilton, Jeffrey Archer, Johnny Depp and more recently Rebekah Vardy have learnt to their cost. Even if they are successful, and that is not always the case, it's unlikely ↵ that they will leave court completely vindicated. They may have been awarded substantial damages, but they will not have *proved* that the statement was false—simply that the defendant has been unable to produce sufficient evidence to prove the truth of the allegation. Given the additional damage a prolonged court case may do to their reputation, it's not always clear whether it is worth the risk.

## Counterpoint

In *Serafin v Malkiewicz and others* [2017] Jay J commented:

The claimant observed somewhat wistfully towards the conclusion of the trial that had he anticipated what was entailed, he would not have brought this claim in the first place. ... It is ... [perhaps] a modern morality tale: a cautionary warning that litigation of this sort, having regard to the nature of the issues at stake, should not be initiated out of almost unbounded self-confidence and lack of judgment, coupled with a misplaced belief that the court will surely succumb to the same charm and eloquence that has worked so effectively in the world outside. (at [354])<sup>47</sup>

Rebekah Vardy may well have thought much the same thing.

*Vardy v Rooney* [2022]—known as the ‘Wagatha Christie’ case—has been the subject of numerous newspaper articles, podcasts, TV dramas and documentaries and even a West End stage show.<sup>48</sup> Rebekah Vardy and Coleen Rooney are well-known media and television personalities, both married to former England football players. *Vardy v Rooney* revolved around an Instagram post by Rooney, a public figure, stating that her former friend, Vardy, had leaked private stories about Rooney and her family to the press in return for payment—a claim which Vardy denied, but which Steyn J found to be ‘substantially true’ (at [287]). Rooney did not seek any compensation; however in October 2022, Vardy was ordered to pay up to £1.5 million of Rooney’s legal fees.

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☛ But why did Vardy decide to sue? After all, Rooney reportedly offered to settle the case three times before it went to trial. Given the way things turned out, it’s hard to resist the conclusion of Jim Waterson in *The Guardian* that ‘not only did Vardy voluntarily bring a libel case that destroyed her own reputation, she will also have paid millions of pounds for the privilege of being publicly humiliated’.<sup>49</sup>

But we should. As David Allen Green notes:

judgments can seem one more one-sided than the reality of the case. If Vardy’s case was inherently weak then it would not require a 75-page judgment with 290 paragraphs. In the end, the judge went with Rooney’s case on each disputed point—but had some of those points gone differently Rooney may have failed in her defence—and it was for Rooney to prove her defence, and not for Vardy to disprove it. Despite the PR disaster of the hearing for Vardy, it was not obvious that Vardy would lose until the judgment was handed down.<sup>50</sup>

Why did she do it? We will never really know for sure. But what we can say is that Rebekah Vardy has joined Johnny Depp, Oscar Wilde and others in finding that, whatever the result, pursuing a defamation claim can be a double-edged sword.

### 17.6.2 Privilege

The defence of privilege allows people to speak and, crucially, publish without fear of defamation proceedings in circumstances where it is important that people are able to speak freely. In such situations—described as ‘privileged’—freedom of expression takes priority over an individual’s right to protect their reputation.

The defence of privilege comes in two forms: absolute and qualified. Absolute privilege covers situations where it is crucial that people are able to speak with complete freedom. In such circumstances, it is not possible to bring a claim in defamation, however outrageous or false the statement and however malicious the speaker. In contrast, qualified privilege only protects the maker of a defamatory statement who speaks honestly and without malice.<sup>51</sup> Here it falls to the claimant to prove malice, once the privilege has been established. Section 7 of the Defamation Act 2013 extends the circumstances in which both forms of the defence can be used.

#### p. 509 17.6.2.1 Absolute privilege

Where the defence of absolute privilege operates it ensures that no action can be taken against a person who makes a defamatory statement. Key situations which are absolutely privileged include:

- (1) parliamentary proceedings, including statements in Parliament and in reports published by Parliament;
- (2) contemporaneous reports of judicial proceedings;
- (3) court proceedings—including those before the UK and international domestic courts, the Court of Justice of the European Union, the ECtHR and UN international tribunals.

No statement in Parliament has ever led to liability in court: ‘the freedom of speech and debate or proceedings in Parliament ought not to be impeached or questioned in any court or place out of Parliament’ (Article 9 of the Bill of Rights 1688). This means that anything said in either House (statements made by parliamentarians outside the House are not privileged)—however ludicrous or false—is absolutely privileged and, as such, cannot give rise to a claim in defamation.<sup>52</sup>

#### 17.6.2.2 Qualified privilege

Qualified privilege is much wider in scope than absolute privilege. It offers a defence:

on an occasion where the person who makes a communication has an interest or duty, legal, social or moral, to make it to the person to whom it is made, and the person to whom it is made has a corresponding interest or duty to receive it. The reciprocity is essential. (Lord Atkinson, *Adam v Ward* [1917] at 334)

It protects the publisher of a defamatory statement where the defendant is under a duty to communicate the relevant information (if it were true) and the recipient has an interest in receiving it. A straightforward example is the provision of a reference concerning a prospective employee to his potential employer. Here the



employer has a clear interest in hearing the honest views of the referee as to the qualities and failings of the prospective employee. Of course, what this means is that even if the reference turns out to be inaccurate, the subject of that reference will have no claim in defamation as long as the referee has acted without malice. This meant that traditionally claimants who lost out on jobs because of inaccurate and bad references could obtain no remedy in law, unless they could show that the referee had acted dishonestly. However, their position has been improved—and the protection afforded by the defence of qualified privilege undercut—by recent developments in the tort of negligence (*Spring v Guardian Assurance* [1995]).

Qualified privilege only applies in situations where the statement is made without malice. A defendant acts maliciously, in this context, if they use ‘the occasion ... for an indirect or wrong motive’ (*Clarke v Molyneux* [1877])—for instance, if the statement is made with the intention of damaging the claimant’s reputation—or where the defendant does not believe that the statement is true, or makes the statement without caring whether it is true or not. ↵ However, where the defendant honestly believes in the truth of the statement they are entitled to the protection of qualified privilege however unreasonable or prejudiced the defendant was in coming to the conclusion that the statement was true:

In ordinary life it is rare indeed for people to form their beliefs by a process of logical deduction from facts ascertained by a rigorous search for all available evidence and a judicious assessment of its probative value. In greater or in less degree according to their temperaments, their training, their intelligence, they are swayed by prejudice, rely on intuition instead of reasoning, leap to conclusions on inadequate evidence and fail to recognise the cogency of material which might cast doubt on the validity of the conclusions they reach. But despite the imperfection of the mental process by which the belief is arrived at it may still be ‘honest’, that is, a positive belief that the conclusions they have reached are true. The law demands no more. (Lord Diplock, *Horrocks v Lowe* [1975] at 150)

Similarly, while we might be interested in hearing all sorts of idle and frivolous gossip, the question is not whether the recipient would be ‘interested’ in receiving the information, it is whether the recipient has ‘an interest’ in receiving such information which is sufficiently strong that the law should protect the maker of the statement even if the information is wrong, as long as they do not act maliciously.

In *Watt v Longsdon* [1930], for example, the defendant, a company director, received information suggesting that the claimant, who was employed overseas, was acting immorally and dishonestly and, in particular, that he was misbehaving with women. Without waiting for the information to be verified, the defendant informed the chairman of the company and the employee’s wife. The information was not true, and the claimant sued. The Court of Appeal held that although the defendant’s communication of the information to the chairman of the company was privileged (there being a common interest in the affairs of company), this privilege did not attach to his telling the employee’s wife. While she may have been ‘interested’ in knowing the information, the company director was under no duty to tell her—which is to say that the public interest in wives learning of their husband’s ‘misbehaviour’ is not sufficiently great as to merit the protection of qualified privilege.<sup>53</sup>



### Peer-reviewed statement in scientific or academic journal

p. 511 Section 6 of the Defamation Act 2013 introduces an entirely new category of qualified privilege, that of a ‘peer reviewed statement in a scientific or academic journal etc’. This is aimed at facilitating academic debate and its introduction is likely due to a small number of cause célèbre cases which were influential in the campaigns surrounding the enactment of the new Act, most notably *British Chiropractic Association v Singh* [2010] in which the British Chiropractic Association sued Singh, a journalist, for critical statements made in a newspaper article. Though this action was ultimately unsuccessful (see the discussion in **section 17.6.4.1**), it was a stark example of the difficulties individuals may face in defending defamation claims. The defence only applies to statements relating to scientific or academic matter (s 6(2)), that have been independently peer-reviewed by the editor of the journal and one or more experts (s 6(3)).<sup>54</sup> Where such statements are privileged, ‘the publication of a fair and accurate copy of, extract from or summary of the statement or assessment is also privileged’ (s 6(5)). As with all forms of qualified privilege, the defence is defeated by malice (s 6(6)).

The defence was considered in *Harcombe v Associated Newspapers* [2022] which involved a series of articles published by the *Daily Mail* and *Mail on Sunday* about the use of statins (a drug used to lower cholesterol levels in blood), including one with the headline ‘The Deadly Propaganda of Statin Deniers’. The publishers sought to defend the case brought by two doctors using the section 4, publication in matter of public interest, defence and section 6. While Nicklin J dismissed the section 4 defence, he upheld the section 6 defence in respect of certain passages in the articles that referred to scientific papers published by the London School of Hygiene and Tropical Medicine. Nicklin J continued:

what might deserve the adjective ‘*absurd*’ would be for Parliament to have provided a new defence of qualified privilege for statements published in peer-reviewed scientific journals, but then to limit that privilege only to the original publisher(s); thereby leaving any wider discussion of these statements without any protection. As is clear from statements made by promoters of the bill, the Government intended s 6 to protect and encourage ‘robust and open scientific debate’; an open debate where all people ‘should be at liberty to debate a subject without fear or favour’. Statements published in peer-reviewed academic or scientific journals do not generally represent such a debate, they inform, contribute to, or stimulate that debate. The safeguards provided in the section, before privilege attaches to the relevant journal publication, were regarded by the Government as sufficient to ensure that the relevant publication would be ‘responsible’ (i.e. deserving of protection). In other words, having established the academic or scientific value of the statement, its publication to the wider public should be privileged, and thereafter available to contribute to important public debate. (at 347)

### 17.6.3 Publication in a matter of public interest

Section 4 of the Defamation Act 2013 introduces an entirely new defence of ‘publication in a matter of public interest’. It is based on—though also abolishes (by virtue of s 4(6))—the so-called *Reynolds* defence, which itself was a development of qualified privilege in the case of *Reynolds v Times Newspapers* [2001].

## ***Reynolds v Times Newspapers* [2001] 2 AC 127 (HL)**

Libel proceedings were brought against the *Sunday Times* for an article suggesting that Albert Reynolds, the former Prime Minister of the Republic of Ireland, had misled the Irish Parliament. The article made no attempt to put his side of the story. Reynolds sued in defamation and *The Times* argued that it was protected by qualified privilege.

In the House of Lords, the defendants argued that the common law should recognise a separate category of qualified privilege for 'political information' covering all reporting of such matters, except where motivated by malice. This was unanimously rejected by the court, with the 4 majority holding that the existing protection provided by the defences of privilege and honest comment was adequate when dealing with matters of public interest and it would be wrong to single out political debate from other matters of public importance.

The appeal therefore failed. Though there was a public interest in the reasons for the claimant's resignation, it was not established that the public interest in the particular story published by the defendants, given how it was presented, was such as to attract the protection of qualified privilege: '[t]he publisher must show that the publication was in the public interest and he does not do this by merely showing that the subject matter was of public interest' (Lord Hobhouse at 239).

Though the defendant newspaper lost in *Reynolds* it nonetheless marked a significant shift in the law of defamation in favour of media freedom most notably through Lord Nicholls's 'responsible journalism' test in which he listed ten (non-exhaustive) factors to be taken into account when determining whether publication of the relevant information is in the public interest and hence whether the defence of qualified privilege will be available. He held that, when balancing the competing interests of an individual in protecting their reputation against freedom of expression, the court should take into account the following factors:

1. The seriousness of the allegation. The more serious the charge, the more the public is misinformed and the individual harmed, if the allegation is not true. 2. The nature of the information, and the extent to which the subject matter is a matter of public concern. 3. The source of the information. Some informants have no direct knowledge of the events. Some have their own axes to grind, or are being paid for their stories. 4. The steps taken to verify the information. 5. The status of the information. The allegation may have already been the subject of an investigation which commands respect. 6. The urgency of the matter. News is often a perishable commodity. 7. Whether comment was sought from the plaintiff. He may have information others do not possess or have not disclosed. An approach to the plaintiff will not always be necessary. 8. Whether the article contained the gist of the plaintiff's side of the story. 9. The tone of the article. A newspaper can raise queries or call for an investigation. It need not adopt allegations as statements of fact. 10. The circumstances of the publication, including the timing ...

The weight to be given to these and any other relevant factors will vary from case to case ... In general, a newspaper's unwillingness to disclose the identity of its sources should not weigh against it. Further, it should always be remembered that journalists act without the benefit of the clear light of hindsight. Matters which are obvious in retrospect may have been far from clear in the heat of the moment. Above all, the court should have particular regard to the importance of freedom of expression. The press discharges vital functions as a bloodhound as well as a watchdog. The court should be slow to conclude that a publication was not in the public interest and, therefore, the public had no right to know, especially when the information is in the field of political discussion. Any lingering doubts should be resolved in favour of publication. (at 205)

## Pause for reflection

As early as 2002, the Master of the Rolls, in *Loutchansky v Times Newspapers Ltd (No 2)* [2002], suggested that '*Reynolds* privilege' is 'a different jurisprudential creature from the traditional form of privilege from which it sprang' (at 806). This was endorsed by Lord Hoffmann and Baroness Hale in *Jameel v Wall Street Journal Europe* [2007], who suggested '[i]t might more appropriately be called the *Reynolds* public interest defence rather than privilege' (Lord Hoffmann at 46).

Traditional forms of privilege attach to the *occasion* on which the statement is made. These are occasions marked out by a reciprocity of duty (on the part of the maker of the statement) and interest (on the part of its recipient)—such as statements made in court, the provision of references and so on. The privilege then attaches to any statements made on such occasions, unless in turn that privilege was abused by demonstrating malice on the part of the defendant. As such, there is, as Lord Hoffmann described it, a 'two-stage process' (at [50]): first, we ask if the statement was made on a privileged occasion; and, secondly, if so, we ask whether that privilege is defeated by the defendant's malice.

By contrast, the defence outlined in *Reynolds* works differently. Here what is privileged is not the *occasion* on which the statement is made but the *material* that is communicated. And whether this material is privileged depends not simply on the occasion on which the statement is made, but also on the contents of the statement and the conduct of the parties in publishing this material in that form. Accordingly, there is no need for a separate inquiry into the possibility of the privilege being removed on the basis of the defendant's malice since 'the propriety of the conduct of the defendant is built into the conditions under which the material is privileged' (at [46]).

In transplanting the new public interest defence as a separate defence away from its roots in qualified privilege, section 4 brings with it the possibility of some much needed conceptual clarity to both defences.<sup>55</sup> Though the break might not be as clean as we might have hoped.

p. 514 Parliament's intention in section 4 was to essentially 'codify' and 'reflect' the current common law defence as developed from *Reynolds* and affirmed by the Supreme Court in *Flood v Times Newspapers* [2012]. The test mirrors the common law, incorporating 'both a subjective element—what the defendant believed was in the public interest at the time of publication—and an objective element—whether the belief was a reasonable one for the defendant to hold in all the circumstances'.<sup>56</sup> And so 'public interest' is used in different ways in each limb of the test. In the first, it is directed to the subject matter of the statement—was it a matter of public interest? While in the second it goes to whether, in all the circumstances, it was in the public interest for the defamatory statement to be published.<sup>57</sup>

Surprisingly, perhaps, 'public interest' is not defined in the Act, though section 4(2) requires the court when determining whether the defence has been made out to 'have regard to all the circumstances of the case', subject to the conditions relating to 'reportage' (s 4(3)) and 'editorial discretion' (s 4(4)). Section 4(3) makes it clear that when determining whether the defamatory statement is on a matter of public interest, the statement may be considered on its own or in the wider context of the article or document in which it was published, thereby incorporating the common law doctrine of 'reportage' (see e.g. *Roberts v Gamble* [2007]), which allows for the disregarding of a defendant's failure to verify the truth of the imputation behind the statement where it is presented as, or forms part of, 'an accurate and impartial account of a dispute to which the claimant was a party'. Section 4(4) requires the court 'when determining whether it was reasonable for the defendant to believe that publishing the statement complained of was in the public interest ... [to] make such allowance for editorial judgment as it considers appropriate'.

Of course, exercising editorial judgement is not limited to newspaper editors. Nevertheless, the purpose of section 4(4) is to expressly recognise the importance of editorial judgement and discretion as affirmed in *Flood* (decided as the draft Defamation Bill was before Parliament), in which the Supreme Court agreed with Lord Hoffmann's observation in *Jameel v Wall Street Journal Europe* [2007] that the intention of *Reynolds* was to promote 'greater freedom for the press to publish stories of genuine public interest' (Lord Brown at [118]) and the role of editors in setting boundaries around this:

The courts ... give weight to the judgment of journalist and editors not merely as to the nature and degree of the steps to be taken before publishing the material, but also as to the content of the material to be published in the public interest. The courts must have the last word in setting the boundaries of what can properly be regarded as acceptable journalism, but within those boundaries the judgment of responsible journalists and editors merits respect. (Lord Mance, *Flood* at [137])

An early case on the application of section 4 was *Barron v Vines* [2016], in which two Labour MPs brought a defamation claim against a UKIP counsellor who alleged during a Sky News interview that they knew for years of the large-scale sexual abuse of children in Rotherham, and that they were still failing to ensure the perpetrators were brought to justice. Finding for the claimants, Warby J offered a ‘tentative and provisional view’ on potential application of the defence that ‘a reasonable belief that it is in the public interest to make statement A could be the basis for the defence, even if the words used unintentionally convey meaning B’ (at [63]).<sup>58</sup> He explored this further in *Economou v de Freitas* [2018].

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### ***Economou v de Freitas* [2018] EWCA Civ 2591 (CA)**

The claimant, Alexander Economou, was the ex-boyfriend of Eleanor de Freitas, the late daughter of the defendant. Ms de Freitas had accused Economou of raping her. Economou was arrested but not charged. Eight months later, he brought a private prosecution (which the CPS subsequently took over) against Ms de Freitas claiming she had sought to pervert the course of justice by falsely accusing him of rape. Four days before the trial started, Ms de Freitas, who suffered from bipolar affective disorder, committed suicide. Mr de Freitas wanted the inquest into his daughter’s death expanded to include an examination of the role of the CPS. He was advised to raise the issues publicly, which he did, authoring—or authorising to be written—seven articles. It is these articles which formed the basis of Economou’s claim.

At first instance, Warby J held that only two of the seven articles were actionable (the others failing to meet the ‘serious harm’ threshold) and that the public interest defence was made out in relation to all of them. The central issue was not simply whether the articles raised issues of public importance (which they did), but whether Mr de Freitas ‘reasonably believed that the publication of the particular statement was in the public interest’. Referring extensively to *Reynolds*, Warby J concluded:

I would consider a belief to be reasonable for the purposes of s 4 only if it is one arrived at after conducting such enquiries and checks as it is reasonable to expect of the particular defendant in all the circumstances of the case. Among the circumstances relevant to the question of what enquiries and checks are needed, the subject-matter needs consideration, as do the particular words used, the range of meanings the defendant ought reasonably to have considered they might convey, and the particular role of the defendant in question. (at [241])

In addition, Mr de Freitas's role was 'closer to that of a source or contributor than that of a journalist' (at [242]). As such, it would be 'wrong in principle' to require him to undertake inquiries expected of a journalist (at [246]).<sup>59</sup>

The Court of Appeal rejected the claimant's argument that Warby J had effectively conferred 'contributor immunity' on the defendant. Recognising that the case raised difficult and important issues of free speech on the one hand, and reputation on the other, Sharp LJ reaffirmed the importance of *Reynolds* when assessing the reasonableness of the defendant's belief.

Section 4 requires the court to have regard to all the circumstances of the case when determining the all-important question arising under section 4(1)(b) ... In my judgment, all the circumstances of the case must include the sort of factors carefully identified by the judge, including, importantly, the particular role of the defendant in question. The statute could have made reference to the *Reynolds* factors in this connection, but it did not do so. That is not to say however, that the matters identified in the non-exhaustive checklist may not be relevant to the outcome of a public interest defence, or that, on the facts of the individual case, the failure to comply with one or some of the factors, may not tell decisively against a defendant. However, even under the *Reynolds* regime, as Lord Nicholls made clear, the weight to be given to those factors, and any other relevant factors, would vary from case to case. As with *Reynolds* therefore, with its emphasis on practicality and flexibility, all will depend on the facts. (at [110])

## Pause for reflection

What is clear from *Economou v de Freitas* is that 'mere contributors' (and by extension bloggers and others who have not practised traditional journalism) will not be held to the same standards as professional journalists in order to qualify for the public interest defence.<sup>60</sup> Do you think this strikes a fair balance between freedom of expression and the protection of an individual's reputation? Should where—and by whom—the defamatory statement is published make a difference? After all, as Lord Hobhouse stated in *Reynolds* 'No public interest is served by publishing or communicating misinformation' (at 128). Indeed, as Sharp LJ noted in *Economou v de Freitas*:



The implications of the publication of false information are, if anything, more serious now than they were when *Reynolds* was decided. The fact that information is present on the Internet, gives it permanence and reach, which may have profound implications for the life and future prospects of the person defamed. A successful public interest defence leaves a claimant whose reputation is damaged without vindication, damages or the ability to obtain injunctive relief ... It might also be said, that in an era of distrust and 'fake news', it is more important than ever that the public should, so far as possible, be put in the picture as to where the truth, or some approximation of it, lies. (at [109])<sup>61</sup>

p. 517 ↩ Following *Economou v de Freitas*, two other cases have considered the application of section 4 in a non-journalist context. Both involved allegations of serious sexual misconduct. In *Hay v Creswell* [2023], the defendant published allegations stating that the claimant had violently sexually assaulted her. Not only did the judge find the allegations to be substantially true, but also it was found that the section 4 defence was made out:

The defendant was writing from her own first-hand knowledge and experience. There were no other checks or inquiries that standards of reasonableness required her to conduct to verify the information that she proposed to publish before she did so ... she has shown that: the statements complained of were on a matter of public interest; that she believed this to be the case at the time of publishing them; and that her belief was reasonable in all the circumstances. (Williams J at [210], [215])

In *Aaronson v Stones* [2023], the defendant posted a number of tweets and featured in a YouTube video alleging that the claimant was a serial rapist. Both worked (or had worked) in the adult entertainment industry in the US. The defendant sought to argue that his defamatory claims were on a matter of public interest and made in the public interest. In particular, he stated that there was a broader public interest in 'speaking out about racism, sexual violence and harassment in order to be able to end impunity and prevent future violence, abuse and harassment', especially in light of the #MeToo movement and 'the historic prejudice and discrimination against adult sex performers in the policing of sexual abuse' (at [40]). The judge held that while 'discussion of rape and sexual abuse (or abuse in general) in any industry will likely be a matter of public interest', this was not the case here. Rather, the statements amounted to 'public accusations of rape against a named individual' (at [344]):

Viewed objectively ... they were little more than a public, specific and targeted attack on the claimant; the allegations were not, for example, contextualised as illustrative examples of a generally recognised problem of rape and abuse in the adult entertainment industry. (Knowles J at [345])



Nor, suggested Knowles J (referring to but not applying the *Reynolds* checklist), was there any attempt made to verify the story (at [395]) or to put it to the claimant (at [407]). The claimant was awarded £110,000 in damages, which included an amount for aggravation in recognition of the fact that the claimant had been subjected to ‘a campaign of defamation of an extremely serious type which directly impacted upon many aspects of the claimant’s life, including his reputation; his business; and his mental well-being’ (at [434]).

But what about more ‘responsible’ journalists? Here too defendants found it difficult to make out the defence. The bar is set high. The section 4 defence failed when Bruno Lachaux (the claimant in *Lachaux v Independent Print Ltd* [2019]) returned to court in July 2021. Nicklin J was clear in his view:

Fundamentally, I have no hesitation in finding that it was not in the public interest to publish the ... [articles], which contained allegations that were seriously defamatory of the claimant, without having given him an opportunity to respond to them. The decision not to contact the claimant was not a result of any careful editorial consideration, it was a mistake that was belatedly recognised, but not corrected, prior to publication. (*Lachaux v Independent Print Ltd* [2020] at [190])

p. 518 ↩ It is the publisher’s responsibility, if they are wanting later to rely on section 4, to ensure that accurate notes and records are kept. He continued:

journalists and those in professional publishing organisations should be able to demonstrate, not only that they reasonably believed that publication would be in the public interest, but also how and with whom this was established at the time ... Of course, the Court has no power to require a journalist—or any other professional—to maintain records. But, as the burden of establishing a public interest defence under s 4 Defamation Act 2013 lies upon the defendant, a defendant seeking to prove that s/he reasonably believed that publishing the statement complained of was in the public interest is likely to find that the prospects of success are enhanced by being able to produce contemporaneous records of the decision(s) taken. (at [120], [122])

Certainly, the comprehensiveness and rigour of journalist Carole Cadwalladr’s research and record keeping was a key component in her reliance on the public interest defence in *Banks v Cadwalladr* [2023].

### ***Banks v Cadwalladr* [2023] EWCA Civ 219 (CA)**

Arron Banks is a high-profile businessman and was the main funder of the Leave.EU campaign. During a TED (technology, entertainment and design) talk in 2019 titled ‘Facebook’s role in Brexit—and the threat to democracy’, Cadwalladr made the following comment: ‘And I am not even going to get into the lies that Arron Banks has told about his covert relationship with the Russian Government’. She later tweeted a link to the talk with a further comment: ‘Oh Arron. This is too

tragic. Nigel Farage's secret funder Arron Banks has sent me a pre-action letter this morning: he's suing me over this TED talk. If you haven't watched it please do. I say he lied about his contact with the Russian govt. Because he did'.

Banks sued Cadwalladr in defamation. The meaning of both comments was held by Saini J, in a previous trial to determine the meaning, to be 'On more than one occasion Mr Banks told untruths about a secret relationship he had with the Russian government in relation to acceptance of foreign funding of electoral campaigns in breach of the law on such funding' (at [6]). A National Crime Agency/Electoral Commission investigation into the matter had cleared Mr Banks of any wrongdoing and so, as a result, Cadwalladr did not contend that this meaning was true and had stated that unequivocally to Banks in a letter of apology. Rather, she sought to rely on the defence in section 4: that the publication was a matter of public interest. The trial judge found that the TED talk was defamatory, but in the public interest (notwithstanding the fact that people could still view it after the publication of the National Crime Agency/Electoral Commission investigation). Cadwalladr believed that publishing the statement was in the public interest and this belief was reasonable. The latter point was supported by the lengthy and extensive investigations Cadwalladr had carried out leading up to the TED talk.<sup>62</sup>

p. 519

↵ The Court of Appeal disagreed. Commenting on the application of section 4, Warby LJ stated:

a public interest defence, once established, does not necessarily endure for ever. A defendant has to show that at the time of each and every publication, he or she continued to believe that it was in the public interest to publish the statement and that this belief remained reasonable when those particular publications were made. The approach is a granular one. The public interest defence is not available in respect of publications made after the defendant ceases to hold the belief in question or such a belief ceases to be reasonable. By parity of reasoning, and for the purposes of consistency and fairness, a claimant cannot succeed in establishing liability in respect of publications which do not cause serious harm, because there is some other publication that does, or because serious harm is caused by the 'publication' taken as a whole. Likewise, it would be unprincipled to treat serious harm caused by conduct which is not actionable because a defence has been made out as a sufficient reason to grant a remedy in respect of other conduct which, viewed in isolation, is not harmful enough to justify this.

The assessment of whether the defamatory statement had caused the claimant 'serious harm' had to be made again, once the section 4 defence fell away. Warby LJ continued:

[the] publication of the TED Talk after 29 April 2020 [the date the National Crime Agency/Electoral Commission investigation published its report] caused serious harm to the reputation of the claimant. There was little direct evidence of harm, but as the [trial] judge held this was ‘unsurprising’ given the well-known difficulties of obtaining such evidence. ... This was, as the judge also held, ‘a serious talk on a serious subject’ given by ‘an award-winning journalist’ on an ‘authoritative and credible international platform’. In these circumstances the inference that serious harm was caused flows from the inherent gravity of the allegation and its natural tendency to cause serious reputational harm, coupled with the judge’s own findings as to the scale of publication in this phase, taken at its lowest. (Warby J at [67])

Warby LJ also rejected the ‘echo chamber’ argument—whereby most of the publishees were people who already disliked or had a generally low opinion of the claimant—as ‘irrelevant’ to the determination of serious harm (at [7]).<sup>63</sup>

### 17.6.4 Honest opinion

Section 3 replaces the common law defence of honest or fair comment with the statutory defence of honest opinion. As Sharp LJ notes in *Butt v The Secretary of State for the Home Department* [2019], ‘the defence of honest opinion, or fair comment as it was known at common law, has long been regarded as an essential part of the protection afforded to freedom of expression in this jurisdiction’ (at [25]). Unlike in the common law defence, there is no need for the statement to be on a matter of public opinion, nor does it depend on malice.

#### p. 520 17.6.4.1 An opinion not fact ...

There is a fine line between a comment *on* facts as opposed to a statement *of* fact and to suggest that comment is restricted to statements of opinion risks oversimplification. A basic rule of thumb is that facts are simply descriptive, whereas comments and opinions are evaluative. So to say, for example, that the ninth edition of this book has 21 chapters is a statement of fact; to say that it is the best yet (which of course may be true!) is a statement of opinion. The veracity of statements of fact is not dependent on the perspectives and values of the person who makes the statement: there is in such cases *a fact of the matter*, and this is the case even if people disagree over what this is. By contrast, opinions are *necessarily* dependent on an individual’s values and preferences.

Though sound in principle, drawing this distinction in practice can be difficult. Indeed, the courts have on occasion suggested that the same statement could be either a statement of fact or a statement of opinion depending on the context. A famous example of this was given by Ferguson J in the New South Wales case of *Myerson v Smith’s Weekly* [1923]: ‘To say that a man’s conduct was dishonourable is not a comment, it is a statement of fact. To say that he did certain specific things and that his conduct was dishonourable is a statement of fact coupled with a comment’. As noted by the Supreme Court in *Joseph v Spiller* [2010], this

cannot be right. To say that a man's conduct was dishonourable is not a simple statement of fact. It is a comment coupled with an allegation of unspecified conduct upon which the comment is based. In fact (no pun intended), a defamatory comment about a person will almost always be based, either expressly or inferentially, on conduct on the part of that person (Lord Phillips at [5]). So, while comments that do not identify the conduct on which they are based have sometimes been treated as if they were statements of fact, the better view is that they remain statements of opinion.

What is clear, however, is that the defence of honest opinion (as with the common law defence) will not succeed in such cases. Instead, only the defence of truth would be open to the defendant, which requires that they prove the existence of facts that justify the comment. *Singh* highlights the difficulties of distinguishing fact and opinion.

### ***British Chiropractic Association v Singh* [2010] EWCA Civ 350 (CA)**

The defendant published a newspaper article containing the following statement:

The British Chiropractic Association claims that their members can treat children with colic, sleeping and feeding problems, frequent ear infections, asthma and prolonged crying, even though there is not a jot of evidence. This organisation is the respectable face of the chiropractic profession and yet it happily promotes bogus treatments.

The British Chiropractic Association sued in libel and the defendant sought to rely on the defence of fair comment. The question for the court was whether these were assertions of fact (in which case the defence would not be available) or statements of opinion. The trial judge, Eady J, held that they were statements of fact, but the Court of Appeal allowed the defendant's appeal.

Though the words 'not a jot of evidence' may be thought to involve a question of fact—either such evidence exists or it does not—the court said that the words should be read as meaning there is 'no worthwhile or reliable evidence'. And whether evidence not only exists but is *worthwhile* is a value judgement, and so a matter of opinion. The claim that the treatments were 'bogus' was to be understood in the same light.

### **Pause for reflection**

↶ Some of the cases have been prepared to treat *inferences of fact* as amounting to comment for the purposes of fair comment, as long as the facts from which the inference is drawn are identified and true. An inference of fact is a statement of fact which is drawn (inferred) from other factual material. So one might infer from the fact that a married TV presenter has a private dinner with her dance

partner a further fact: that they are having an affair. *Singh* appears to endorse this view, at least insofar as we are concerned with scientific or medical matters where the question of what inferences (of fact) can be drawn from the available evidence is contested.

The Supreme Court in *Joseph v Spiller* noted that one possible reform of the *common law* defence of honest comment would be to extend it to inferences of fact. However, Lord Phillips was unconvinced by the merits of such a reform:

Some decisions have gone further and treated allegations of verifiable fact as comment ... It is questionable whether this is satisfactory. Prejudiced commentators can draw honest inferences of fact, such as that a man charged with fraud is guilty of fraud. Should the defence of fair comment apply to such inferences? Allegations of fact can be far more damaging, even if plainly based on inference, than comments on true facts. (at [114])

Do you agree? Is it correct to say that allegations of fact will typically be taken more seriously and hence will cause more damage than comments and statements of opinion? Can we maintain the line between statements (including inferences) of fact and statements of opinion without severely limiting individuals' freedom to challenge (potentially) bogus scientific claims?

### 17.6.4.2 ... that indicates the basis of the opinion

The defence of honest opinion is available only where the statement is one of opinion rather than fact *and* the facts on which that opinion is based are sufficiently identified, whether in general or specific terms. This reflects the test approached by the Supreme Court in *Joseph v Spiller*.

#### ***Joseph v Spiller* [2010] UKSC 53 (SC)**

The claimants were musicians who had entered into a contract with the defendant booking agency. The contract included a 're-engagement clause', which provided that if the claimants were to perform at a venue for a second time within a 12-month period, this second booking was to be arranged through the defendant. The defendant wrote to the claimants complaining that they had breached this clause by arranging a second booking directly with the venue. In their reply by email, the claimants wrote: 'your contract ... holds no water in legal terms'. The defendant then posted a notice on their website stating that they would no longer accept bookings for the claimants as 'following a breach of contract' they had advised that 'the terms and conditions of "contracts hold no water in legal terms"'.

In response to the claimants' defamation claim, the defendant pleaded fair comment. The claimants applied to have this defence struck out on, among other things, the basis that the facts to which the comments were directed were not identified with sufficient particularity in the notice on their website, since the details of the alleged breach of contract were not specified. The application succeeded at first instance and in the Court of Appeal, but not before the Supreme Court.

Giving the leading judgment, Lord Phillips held that for the defence to be available:

the comment [need not] identify the matters on which it is based with sufficient particularity to enable the reader to judge for himself whether it was well founded. The comment must, however, identify at least in general terms what it is that has led the commentator to make the comment, so that the reader can understand what the comment is about and the commentator can, if challenged, explain by giving particulars of the subject matter of his comment why he expressed the views that he did. A fair balance must be struck between allowing a critic the freedom to express himself as he will and requiring him to identify to his readers why it is that he is making the criticism. (at [104])

More generally, he noted the need for the defence of fair—or, as the Supreme Court preferred, honest—comment to develop to fit modern modes of communication.

Today the internet has made it possible for the man in the street to make public comment about others in a manner that did not exist when the principles of the law of fair comment were developed, and millions take advantage of that opportunity. Where the comments that they make are derogatory it will often be impossible for other readers to evaluate them without detailed information about the facts that have given rise to the comments. Frequently these will not be set out. If [the defendant were required to provide sufficient facts as to enable a reader to judge if the comments are well founded] the defence of fair comment will be robbed of much of its efficacy. (at [99])

Lord Walker echoed these sentiments:

The creation of a common base of information shared by those who watch television and use the internet has had an effect which can hardly be overstated. Millions now talk, and thousands comment in electronically transmitted words, about recent events of which they have learned from television or the internet. Many of the events and the comments on them are no doubt trivial and ephemeral but from time to time (as the present appeal shows) libel law has to engage with them. The test for identifying the factual basis of honest comment must be flexible enough to allow for this type of case, in which a passing reference to the previous night's celebrity show would be regarded by most of the public, and may sometimes have to be regarded by the law, as a sufficient factual basis. (at [131])

### 17.6.4.3 ... and could be—and is—honestly held

p. 523 The defendant must prove that there is a true factual basis to form a sufficient basis for the comment such that an honest person could have held the opinion. The defendant need not prove that all the facts on which his opinion is based are true, just enough to make it possible to hold the opinion in question.<sup>64</sup> This is an objective test and asks whether an honest person could have held the opinion either ‘on the basis of any fact which existed at the time the statement complained of was published’ (s 3(4)(a)), or ‘on the basis of anything asserted to be a fact in a privileged statement published before the statement complained of’ (s 3(4)(b)). The test then is not one of reasonableness, but rather whether the view is one that an honest person might hold. To use Lord Nicholls’s formulation in *Tse Wei Chun v Cheng* [2001] it asks whether the comment was ‘one which could have been made by an honest person, however prejudiced he might be, and however exaggerated or obstinate his views’ (at [20]). Thus, while the defendant cannot rely on an honestly held opinion if that opinion was based on incorrect facts and there were no other facts which could have supported it, it may be possible for the defendant to rely on the defence where the opinion is based on a honest but distorted view of the underlying facts or event where an honest person shared their view by reference to facts of which the defendant was not aware at the time the defamatory statement was published (and so upon which the opinion was not based).

Finally, as with the common law defence, there will be no defence if the defamatory opinion offered by the defendant is not an opinion they in fact hold or, where the statement is said by someone other than the defendant, where the defendant knew or ought to have known that the author did not hold the opinion.

Honest opinion was applied in *Butt v The Secretary of State for the Home Department* [2019].

### ***Butt v The Secretary of State for the Home Department* [2019] EWCA Civ 933 (CA)**

In September 2015 the Home Office published a press release detailing updates to the Government’s Prevent duty guidance titled: ‘PM’s Extremist Task Force: Tackling Extremism in Universities and Colleges Top of the Agenda’. The claimant, Salman Butt, chief editor of a website called Islam21C, was named in a list of guest speakers who had previously spoken at universities and who were ‘on record as expressing views contrary to British values’ (at [8]). Butt sued the Home Secretary in defamation arguing the natural and ordinary meaning of the words were that he was an extremist hate speaker and was likely to radicalise students. At trial Nicol J found that while the natural and ordinary meaning of the press release to be that ‘the claimant is an extreme hate speaker who legitimises terrorism and from whose pernicious and poisonous influence students should be protected’ and, as such, was defamatory, the Home Secretary was able to rely on the defence of honest opinion under section 3 of the Defamation Act 2013: ‘... the statement complained of was a statement of opinion; and ... indicated in general terms the basis of the opinion, namely the views of Dr Butt which were in the public domain’ (at [9]). Butt appealed.



The question for the Court of Appeal was whether the statement complained of was one of opinion or fact. Finding for the Home Office, Sharp LJ held the relevant test to be ‘how the statement would strike the ordinary reader’ and that in determining this ‘the subject matter, the nature of the allegation and the context of the relevant words may well be important’ (at [39]) before going on to conclude that, on this basis, the ordinary reader would understand the statement about Butt in the press release to be an evaluative ‘value judgment or expression of opinion’ (at [39]).

In *Dyson v MGN Ltd* [2023], the defendant had published an article in which it claimed:

the vacuum cleaner tycoon who championed Vote Leave due to the economic opportunities it would bring British industry before moving his global head office to Singapore. In other words kids, talk the talk, then screw your country, and if anyone complains tell them to suck it up. (at [5])

p. 524 ↩ Nicklin J determined the natural ordinary meaning of the article as follows:

- (a) the Claimant had publicly supported the benefits of Brexit to British industry, yet following Brexit he had moved the global head office of his business to Singapore. [An allegation of fact]
- (b) by so doing, the Claimant was a hypocrite who had screwed the country and who set a poor moral example to young people. [An expression of opinion]

(*Dyson v MGN Ltd* [2022] at [21])

The defendant sought to rely on the defence of honest opinion. While ultimately the case failed, on the basis that it had not caused the claimant serious harm, the judge considered section 3(4)(a) of the Act. The first issue for the court was whether when seeking to make out this defence, the defendant could rely on facts other than the single fact mentioned in the article. Jay J held that they could: on the assumption that the fact is true, there is ‘no basis for confining a defendant to that bare fact, excluding from account related and connected facts’ (at [106]). Nor, Jay J continued, was it necessary for the defendant to include contextual facts so long as the omission did not ‘falsify or contradict the basic factual allegation: that Dyson moved part of its business out of the jurisdiction’ (at [131]). Finally, in assessing whether an honest commentator could have held the opinion expressed in the article, the correct test, as set out by Lord Esher in *Merivale v Carson* [1887], was whether ‘any fair man, however prejudiced he may be, however exaggerated or obstinate his views, [would] have said that which this criticism has said of the work which is criticised’ (at [134]). On this basis, the defendant’s statement that the claimant’s actions were ‘hypocritical and highly symbolic ... [and] could undermine the confidence of others in the UK and [is] ... a poor moral example to young people’ fell within the scope of honest opinion, and the defence was made out (meaning that the claimant was able to rely on it).

Test your understanding by trying this section's self-test questions <https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-self-test-questions-17-6>.

### 17.7 Distributors, including operators of websites

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A distinction is drawn between those who publish and republish defamatory material—authors, editors, publishers and so on—and mechanical distributors—those who simply disseminate the material (usually booksellers, libraries, newsagents). Section 1 of the Defamation Act 1996 provides the latter with a defence of ‘innocent defamation’ if he is able to show (1) he was not the author, editor or publisher of the statement complained of; (2) he took reasonable care in relation to its publication; and (3) he did not know, or had no reason to believe, that what he did caused and contributed to the publication of a defamatory statement.

It extends the defence to ‘mechanical distributors’ to include ‘printers, producers, distributors and sellers of material containing the statement’ (s 1(3)(a)) as well as to broadcasters of live programmes where they have no effective control over the person making the statement (s 1(3)(d)). The latter claim is comparatively rare. Most potentially defamatory programmes are either pre-recorded or, in order to meet the requirement of reasonable care (s 1(1)(b)), shown ‘as live’ where transmission is slightly delayed. It also extends to ‘operators

p. 525 ↪ of or providers of access to a communications system by means of which the statement is transmitted, or made available, by a person over whom he has no effective control’ (s 1(3)(e)), that is, ISPs or Twitter where the quantity of material means that it may have limited awareness of what is being added to the system.

Section 10(1) of the 2013 Act adds a further layer of protection for ‘secondary’ publishers. It states that:

A court does not have jurisdiction to hear and determine an action for defamation brought against a person who was not the author, editor, or publisher of the statement complained of unless the court is satisfied that it is not reasonably practicable for an action to be brought against the author, editor or publisher.

Section 5 of the 2013 Act extends the protection offered to website operators, making it ‘a defence for the operator to show that it was not the operator who posted the statement on the website’ (s 5(2)). The defence is limited in section 5(3) where (a) it is not possible for the claimant to identify the person who posted the statement; (b) the claimant gave the operator a notice of complaint in relation to the statement; and (c) the operator failed to respond to the notice in line with the Defamation (Operators of Websites) Regulations 2013. The defence is also defeated by malice on the part of the operator (s 5(11)). While the effect of this defence means that website operators will not be automatically liable in defamation (even if they moderate comments), they may become liable if they do not act in accordance with the regulations and where users use pseudonyms (thus preventing the claimant from identifying the poster directly).

Test your understanding by trying this section's self-test questions <<https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-self-test-questions-17-7>>.

## 17.8 Offer of amends

Where the defamatory statement is unintentional—for example, where the defendant knows that the statement refers to the claimant but honestly and reasonably believes that it is true or where (as in cases of mistaken identity described earlier) the defendant never intends to refer to the claimant—the defendant can choose to make an offer of amends (usually an apology and correction, and appropriate damages) under section 2 of the Defamation Act 1996. An offer of amends is not strictly a defence. Its purpose is not to allow the defendant to claim that the defamatory statement was justified or excusable, rather it provides an opportunity for the defendant to acknowledge they were wrong and to prevent the claim from going any further.

Timing is crucial here. The offer must be made before the service of a defence to the claim; that is, the defendant must choose whether they are going to fight the defamation action or admit they were wrong. This is to ensure the effectiveness of the apology. As Judge LCJ noted in *Cairns v Modi* [2012]:

It is virtually self-evident that in most cases publication of a defamatory statement to one person will cause infinitely less damage than publication to the world at large, and that publication on a single occasion is likely to cause less damage than repeated publication and consequent publicity on social media. By the same token, rapid publication of the withdrawal of a defamatory statement, accompanied by an apology, together with an admission of its falsity given as wide publicity as the original libel diminishes its impact more effectively than an apology extracted after endless vacillation while the libel remains in the public domain, unregretted and insidiously achieving greater credibility. (at [24])

p. 526     If the defendant's offer is accepted, the action stops and damages are agreed by the parties.<sup>65</sup> If damages cannot be agreed, then damages will be assessed by the court. If the offer is not accepted, the defendant can use the fact that the offer was made in their defence (unless the claimant is able to show that the defendant *knew* that the comments referred to the claimant and were false and defamatory) (Defamation Act 1996, s 4).

There are many examples of an offer of amends in practice—see, for example, the *Daily Express* and *Daily Star*'s front-page apology to the parents of Madeleine McCann for suggestions that they had in some way contributed to her death,<sup>66</sup> *The People*'s apology to the father of Baby P, whom the paper had falsely accused of being a convicted rapist (*Cairns v Modi* [2012]), the Metropolitan Police's apology to a man who was wrongly pictured on 'wanted posters' following the London Riots in 2011,<sup>67</sup> the *Daily Telegraph*'s apology (and payment of 'substantial damages') to Melania Trump<sup>68</sup> and former MEP Jacqueline Foster's apology to Melika Gorgianeh, a contestant on the BBC quiz show 'University Challenge', for suggesting that she had chosen an antisemitic symbol as her team's mascot.<sup>69</sup>

An example where a defendant failed to take up the opportunity of an offer of amends is *Monroe v Hopkins* [2017]. Katie Hopkins, a journalist who then wrote for the *MailOnline*, posted a tweet which accused Jack Monroe, a food blogger and writer, ‘of vandalising a war memorial and desecrating the memory of those who fought for her freedom, or of approving or condoning such behaviour’ (at [2]). Following further exchanges relating to Hopkins’s original tweet, Monroe tweeted Hopkins saying ‘Dear @KTHopkins, public apology + £5k to migrant rescue & I won’t sue. It’ll be cheaper for you and v. satisfying for me’ (at [17]). The offer was later repeated in a letter from Monroe’s solicitor. However, it was not taken up. In his concluding comments, Warby J, the trial judge, noted: ‘The case could easily have been resolved at an early stage. There was an open offer to settle for £5,000. It was a reasonable offer’ (at [83]). Instead, Monroe was awarded £24,000 in compensation and costs were reported to be £300,000.<sup>70</sup>

Test your understanding by trying this section’s self-test questions <<https://iws.oup.support.com/embed/access/content/horse9e-student-resources/horse9e-self-test-questions-17-8>>.

## 17.9 Remedies: Damages and injunctions

p. 527 An award of damages is the primary remedy in defamation. The amount of damages awarded in defamation cases often appears out of proportion with those awarded for personal injuries. This is partly because an action in defamation is one of the few times in tort law where a compensatory award may be supplemented by aggravated or ↵ exemplary damages.<sup>71</sup> In *Hijazi v Yaxley-Lennon* [2021], for example, a schoolboy victim of a racist attack<sup>72</sup> was falsely and deliberately presented by the defendant, Stephen Yaxley-Lennon (also known as Tommy Robinson, a well-known public figure on the political right), in two videos on his Facebook account as the violent aggressor after the original video of the attack went viral. The result was described by the judge as ‘entirely predictable’ (at [162]). The claimant became the target of abuse, he and his family having to leave their home, and the claimant left education. Awarding the claimant £100,000 in damages, Nicklin J continued:

The defendant is responsible for this harm, some of the scars of which, particularly the impact on the Claimant’s education, are likely to last for many years, if not a lifetime. The most significant element of the damages award that I fix will be the need for vindication. This judgment—but more importantly—the award of damages will mark clearly that the defendant has failed to demonstrate the truth of his allegations. The defendant took on the burden of proving his allegations to be true. He has failed. In reality, and for the reasons I have explained, his evidence fell woefully short. He has, however, persisted with the serious allegations he originally made, and has even added to them during the proceedings. The claimant has had to face them in the full glare and publicity of a High Court trial. It is my responsibility to make clear that the defendant has failed in his defence of truth, to vindicate the claimant and to award him a sum in damages that represents fair compensation. (at [162]–[163])<sup>73</sup>

Thus, while the purpose of personal injury damages is primarily compensatory, damages for defamation (as well as being compensatory in respect of hurt feelings and distress as well as material losses caused by the defamatory statement) incorporate the additional purposes of vindication (repairing and re-establishing the claimant's reputation), and—to a lesser extent—punishment and deterrence (*John v MGN Ltd* [1997] at 607). In addition, in *Cairns v Modi* the Court of Appeal recognised the potential of the so-called 'percolation phenomenon' to increase the amount of damages awarded where the defamatory statement has 'gone viral':

we recognise that as a consequence of modern technology and communication systems any such stories will have the capacity to 'go viral' more widely and more quickly than ever before. Indeed it is obvious that today, with the ready availability of the world wide web and of social networking sites, the scale of this problem has been immeasurably enhanced, especially for libel claimants who are already, for whatever reason, in the public eye. In our judgment, in agreement with the judge, this percolation phenomenon is a legitimate factor to be taken into account in the assessment of damage. (Judge LCJ at [27])

p. 528 ↩ Traditionally damages were assessed by the jury. This led to a wide variety in level of awards particularly when compared to those for personal injury as the jurors were, in Bingham MR's words, left 'in the position of sheep loosed on an unfenced common, with no shepherd' (*John v MGN* at 608).<sup>74</sup> Since the Court of Appeal's decision in *John v MGN*, judges had been able to inform juries of the level of damages in personal injury cases as a way of trying to guide their decision and prevent disproportionate libel awards. And, of course, now that the presumption of a jury trial has been abolished (Defamation Act 2013, s 11), this is now a matter for the judge.

An award of damages can be accompanied by a final injunction prohibiting further publication of the defamatory material. An injunction is an immediate court order preventing someone from taking certain steps, and a defendant who fails to comply can be imprisoned for contempt of court. An injunction can be obtained before a case is heard to prevent the further dissemination of potentially defamatory material in a matter of days or, in extremely urgent cases, a matter of hours. More often an injunction is awarded after a statement has been accepted by the courts as defamatory. This is relatively uncontroversial.

Section 13 of the Defamation Act 2013 provides a further avenue for the removal of defamatory material requiring (a) the website operator to remove the statement or (b) any other person to 'stop distributing, selling or exhibiting material containing the statement'. In *Blackledge v Person(s) Unknown (Being the Authors, Editors and Publishers of the Website <https://metooucu.blogspot.com>)* <<https://metooucu.blogspot.com>> [2021], false and seriously defamatory allegations of sexual misconduct by the claimant, a politics and ethics academic, were anonymously posted on a website. The defendant's identity remained unknown throughout the case and to this day. In light of the significant impact of the defamatory statements on the claimant and his credibility and career, as well as the manner and reach of their publication, the claimant was awarded £70,000 in damages. He is unlikely to recover these. Given that the defendant is unlikely to comply with the injunction (awarded nonetheless to remove the posts) the judge held:

an order requiring Google to remove the Website is justified and wholly appropriate. ... Where an injunction may not be effective, as in the instant case, an order under section 13 is an appropriate and proportionate remedy. On the facts of this case, where D has hidden their identity, a section 13 order is likely to be the only remedy that is capable of providing effective and meaningful protection to C's civil rights. (Saini J at [61])

Test your understanding by trying this section's self-test questions. <<https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-self-test-questions-17-9>>.

### 17.10 The Defamation Act 2013—Annotated

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In **Figure 17.1** we have annotated extracts from the Defamation Act 2013, highlighting the key issues which have been discussed in this chapter.

Access an interactive annotated copy of the Act <<https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-chapter-17-annotated-statute-defamation-act-2013-interactive>> and click on the highlighted phrases for author commentary. You can also download a non-interactive copy of the annotated extract <<https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-chapter-17-annotated-statute-defamation-act-2013>>.



## Defamation Act 2013

### 1. Serious harm

(1) A statement is not defamatory unless its publication has caused or is likely to cause serious harm to the reputation of the claimant.

(2) For the purposes of this section, harm to the reputation of a body that trades for profit is not 'serious harm' unless it has caused or is likely to cause the body serious financial loss.

### 2. Truth

(1) It is a defence to an action for defamation for the defendant to show that the imputation conveyed by the statement complained of is substantially true.

(2) Subsection (3) applies in an action for defamation if the statement complained of conveys two or more distinct imputations.

(3) If one or more of the imputations is not shown to be substantially true, the defence under this section does not fail if, having regard to the imputations which are shown to be substantially true, the imputations which are not shown to be substantially true do not seriously harm the claimant's reputation.

(4) The common law defence of justification is abolished and, accordingly, section 5 of the Defamation Act 1952 (justification) is repealed.

### 3. Honest opinion

(1) It is a defence to an action for defamation for the defendant to show that the following conditions are met.

(2) The first condition is that the statement complained of was a statement of opinion.

(3) The second condition is that the statement complained of indicated, whether in general or specific terms, the basis of the opinion.

(4) The third condition is that an honest person could have held the opinion on the basis of—

(a) any fact which existed at the time the statement complained of was published;

This is a new requirement aimed at ensuring that only the most serious cases are brought (see **Lachaux v Independent Print Ltd [2019]**). Note: it does not change who can sue.

This ensures that the harm to the reputation of a company (or similar) is not serious harm unless it has caused, or is likely to cause, serious financial loss.

What matters is whether the defamation of the defendant can be shown to be true, not whether the statement can be shown to be true in some other sense or for some other purpose.

The defence does not apply to statements of fact. See **Joseph v Spiller [2010]** for discussion of the difficulty sometimes of distinguishing between statements of fact and statements of opinion.

Honesty was a requirement of the common law defence. However, unlike the common law, there is no need to prove the absence of malice.

See **Dyson v MGN Ltd [2023]**.

This section replaces the common law defence of justification (see s 2(4)). It is intended to broadly reflect – while clarifying certain elements of – the common law. See **Depp II v News Group Newspapers Ltd [2020]**.

The defendant does not have to prove that every word was true – all that she needs to establish is the 'sting' of the claim.

As in the common law, the defence doesn't fail just because the defendant cannot establish the truth of every statement.

This section replaces the common law defence of fair comment (see s 3(8)). For an application of the defence see **Butt v The Secretary of State for the Home Department [2019]**.

However, unlike the common law defence there is no need for the statement to be on a matter of public opinion.

It must be clear, either generally or specifically, what formed the basis of the opinion (this is the test laid down by Lord Phillips in **Joseph v Spiller**).



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(b) anything asserted to be a fact in a privileged statement published before the statement complained of.

(5) The defence is defeated if the claimant shows that the defendant did not hold the opinion.

(6) Subsection (5) does not apply in a case where the statement complained of was published by the defendant but made by another person ('the author'); and in such a case the defence is defeated if the claimant shows that the defendant knew or ought to have known that the author did not hold the opinion.

This section allows the defence, in certain circumstances, to cover the statements of others.

(7) For the purposes of subsection (4)(b) a statement is a 'privileged statement' if the person responsible for its publication would have one or more of the following defences if an action for defamation were brought in respect of it—

- (a) a defence under section 4 (publication on matter of public interest);
- (b) a defence under section 6 (peer-reviewed statement in scientific or academic journal);
- (c) a defence under section 14 of the Defamation Act 1996 (reports of court proceedings protected by absolute privilege);
- (d) a defence under section 15 of that Act (other reports protected by qualified privilege).

By abolishing the common law defence, and repealing s 6 of the 1952 Act, the 2013 Act prevents defendants from arguing the common law defence alongside (or even instead of) the statutory defence. See also ss 2(4) and 4(6).

(8) The common law defence of fair comment is abolished and, accordingly, section 6 of the Defamation Act 1952 (fair comment) is repealed.

Note the different ways 'public interest' is used in this section.

#### 4. Publication on matter of public interest

(1) It is a defence to an action for defamation for the defendant to show that—

- (a) the statement complained of was, or formed part of, a statement on a matter of public interest; and
- (b) the defendant reasonably believed that publishing the statement complained of was in the public interest.

This defence replaces the so-called **Reynolds [2001]** defence.

(2) Subject to subsections (3) and (4), in determining whether the defendant has shown the matters mentioned in subsection (1), the court must have regard to all the circumstances of the case.

See **Economou v de Freitas [2018]** and **Banks v Cadwalladr [2022]**.

(3) If the statement complained of was, or formed part of, an accurate and impartial account of a dispute to which the claimant was a party, the court must in determining whether it was reasonable for the defendant to believe that publishing the statement was in the public interest disregard any omission of the defendant to take steps to verify the truth of the imputation conveyed by it.

This section is intended to capture the common law doctrine of 'reportage'.

This directly reflects the Supreme Court decision in *Flood v Times Newspapers* [2012].

(4) In determining whether it was reasonable for the defendant to believe that publishing the statement complained of was in the public interest, the court must make such allowance for editorial judgement as it considers appropriate.

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In cases where website operators do not 'edit' the content of the website they will also be protected under s 10 so long as they are not the 'author, editor or publisher' of the statement and it is 'reasonably practicable' for the claimant to pursue the author, editor or publisher of the statement.

This section limits the scope of the defence in relation to websites that allow users to post comments using a pseudonym.

This section offers protection to website moderators.

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(5) For the avoidance of doubt, the defence under this section may be relied upon irrespective of whether the statement complained of is a statement of fact or a statement of opinion.

(6) The common law defence known as the *Reynolds* defence is abolished.

### 5. Operators of websites

(1) This section applies where an action for defamation is brought against the operator of a website in respect of a statement posted on the website.

(2) It is a defence for the operator to show that it was not the operator who posted the statement on the website.

(3) The defence is defeated if the claimant shows that—

(a) it was not possible for the claimant to identify the person who posted the statement,

(b) the claimant gave the operator a notice of complaint in relation to the statement, and

(c) the operator failed to respond to the notice of complaint in accordance with any provision contained in regulations.

(4) For the purposes of subsection (3)(a), it is possible for a claimant to 'identify' a person

...

(12) The defence under this section is not defeated by reason only of the fact that the operator of the website moderates the statements posted on it by others.

### 6. Peer-reviewed statement in scientific or academic journal etc

[(1) The publication of a statement in a scientific or academic journal (whether published in electronic form or otherwise) is privileged if the following conditions are met.

(2) The first condition is that the statement relates to a scientific or academic matter.

(3) The second condition is that before the statement was published in the journal an independent review of the statement's scientific or academic merit was carried out by—

(a) the editor of the journal, and

(b) one or more persons with expertise in the scientific or academic matter concerned.

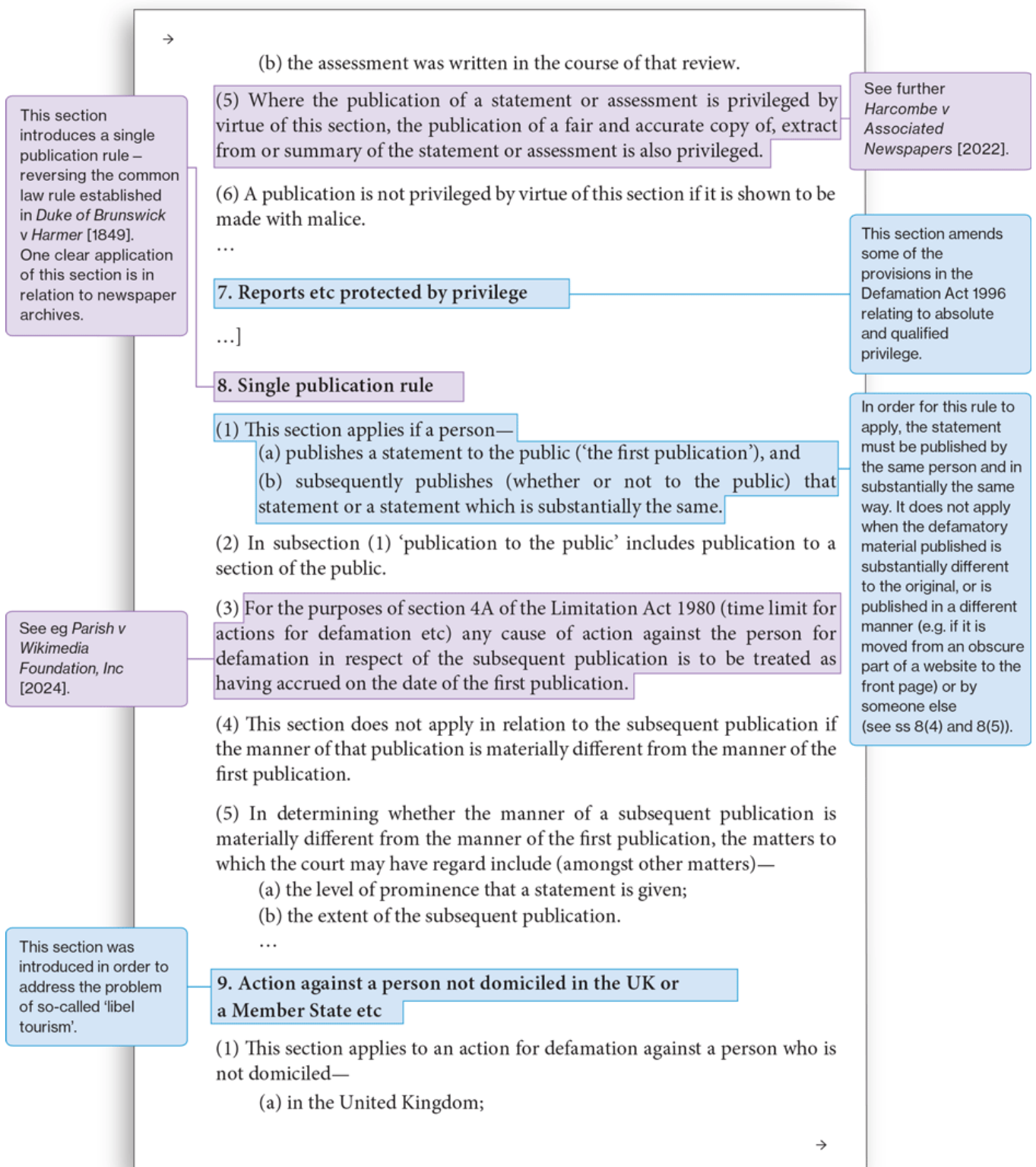
(4) Where the publication of a statement in a scientific or academic journal is privileged by virtue of subsection (1), the publication in the same journal of any assessment of the statement's scientific or academic merit is also privileged if—

(a) the assessment was written by one or more of the persons who carried out the independent review of the statement; and

This section extends the protection offered to operators of websites.

This section is introduced as a direct result of the case of *British Chiropractic Association v Singh* [2010].

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- (b) in another Member State; or
- (c) in a state which is for the time being a contracting party to the Lugano Convention.

(2) A court does not have jurisdiction to hear and determine an action to which this section applies unless the court is satisfied that, of all the places in which the statement complained of has been published, England and Wales is clearly the most appropriate place in which to bring an action in respect of the statement.

...

This section offers additional protection to so-called 'secondary publishers'.

#### 10. Action against a person who was not the author, editor etc

(1) A court does not have jurisdiction to hear and determine an action for defamation brought against a person who was not the author, editor or publisher of the statement complained of unless the court is satisfied that it is not reasonably practicable for an action to be brought against the author, editor or publisher.

(2) In this section 'author', 'editor' and 'publisher' have the same meaning as in section 1 of the Defamation Act 1996.

#### 11. Trial to be without a jury unless the court orders otherwise

(1) In section 69(1) of the Senior Courts Act 1981 (certain actions in the Queen's Bench Division to be tried with a jury unless the trial requires prolonged examination of documents etc) in paragraph (b) omit 'libel, slander,'.

(2) In section 66(3) of the County Courts Act 1984 (certain actions in the county court to be tried with a jury unless the trial requires prolonged examination of documents etc) in paragraph (b) omit 'libel, slander,'.

This section abolishes the (unusual) presumption in favour of a jury trial in defamation cases. It leaves the courts with a residual discretion to order a jury trial, but gives no guidance on when it might be appropriate to so order. See *Tim Yeo MP v Times Newspapers* [2014].

...

#### 13. Order to remove statement or cease distribution etc

(1) Where a court gives judgment for the claimant in an action for defamation the court may order—

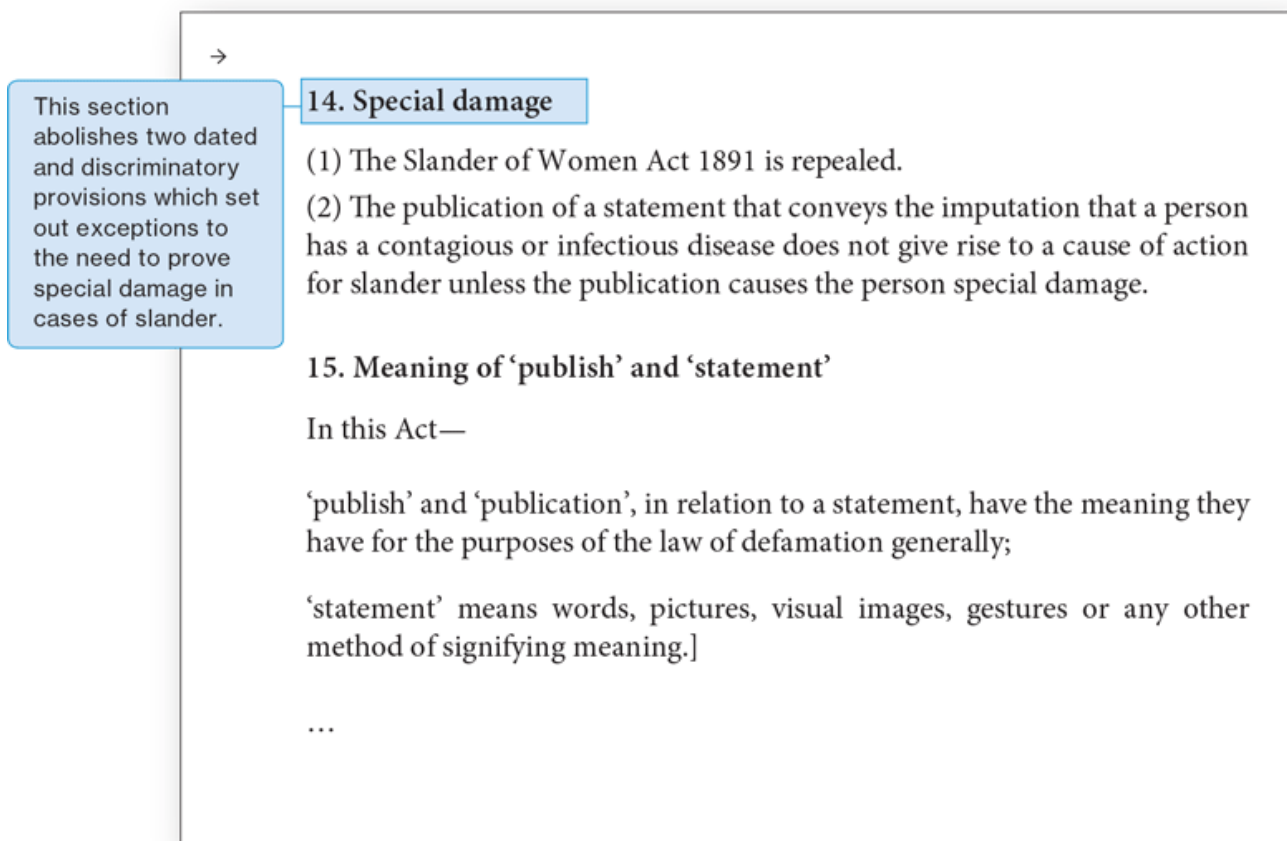
(a) the operator of a website on which the defamatory statement is posted to remove the statement, or

(b) any person who was not the author, editor or publisher of the defamatory statement to stop distributing, selling or exhibiting material containing the statement.

...

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This allows the court to order the removal of defamatory material. It is useful in cases where it is clear that the defendant will not comply with an injunction to do this. See *Blackledge v Person(s) Unknown (Being the Authors, Editors and Publishers of the Website https://metooucu.blogspot.com)* [2021].



**Figure 17.1** The Defamation Act 2013

## p. 530 17.11 Conclusion

Defamation protects an individual's or a company's reputation by allowing them to prevent the publication of, or recover damages for, public statements that have caused or are likely to cause serious harm to the reputation of the claimant. In so doing, the courts have to decide whether an individual's interest in what people think of them should trump the freedom of others to be able to say what they know, or think they know, about them.

In order to bring a claim, the statement must be defamatory (as opposed to simply insulting), it must refer to the claimant and must be published. The defendant can, however, defeat a claim in defamation by virtue of a number of defences, many of which have been put on a statutory footing in the Defamation Act 2013.

**Decision Tree 17.1** shows the elements of a claim in defamation and common defences. For the purposes of this decision tree:

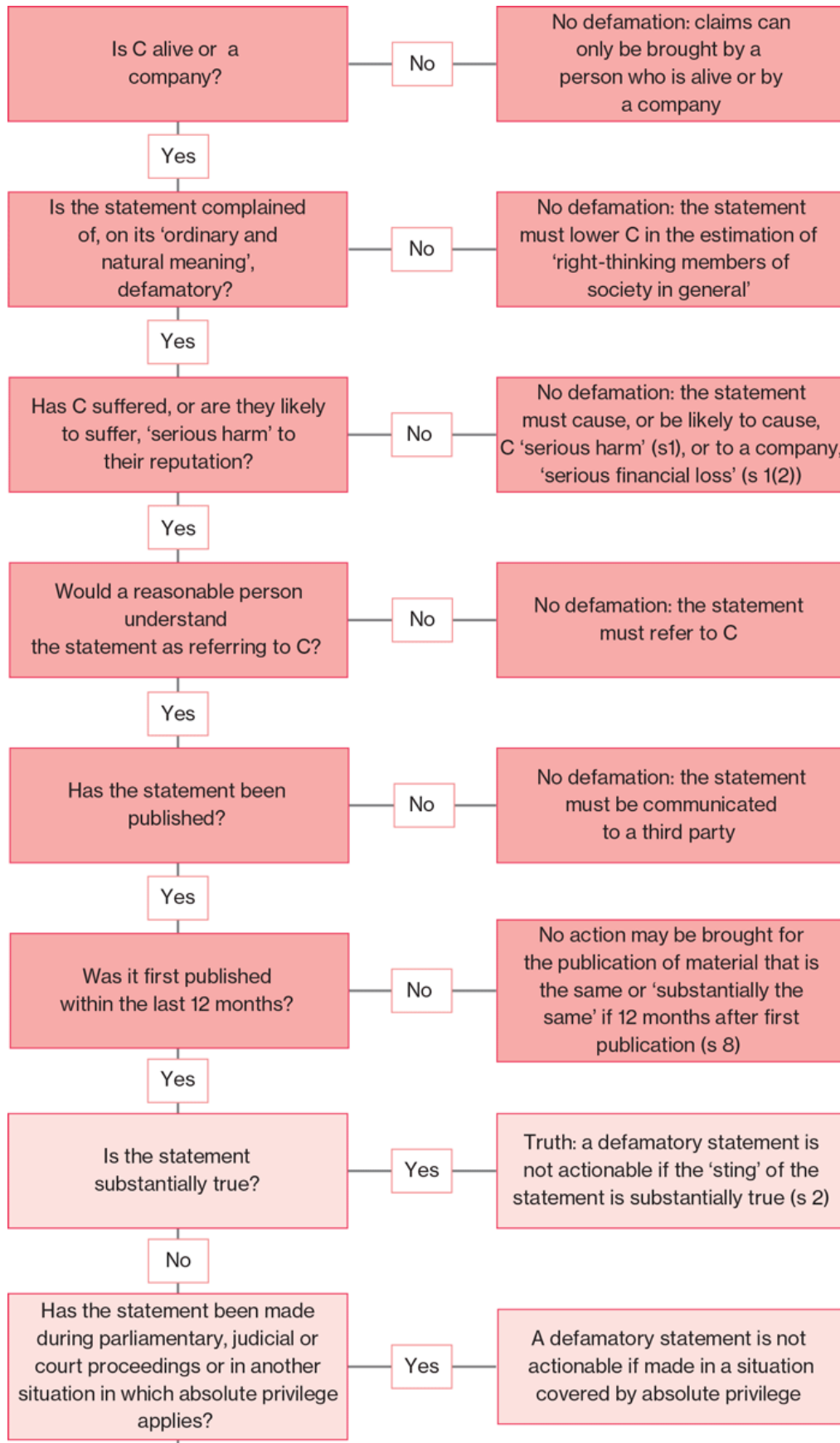
C must be domiciled in the UK or a member state (under s 9 courts have no jurisdiction unless England and Wales is the 'most appropriate place' to bring a claim).

All section references are to the Defamation Act 2013 unless stated otherwise.

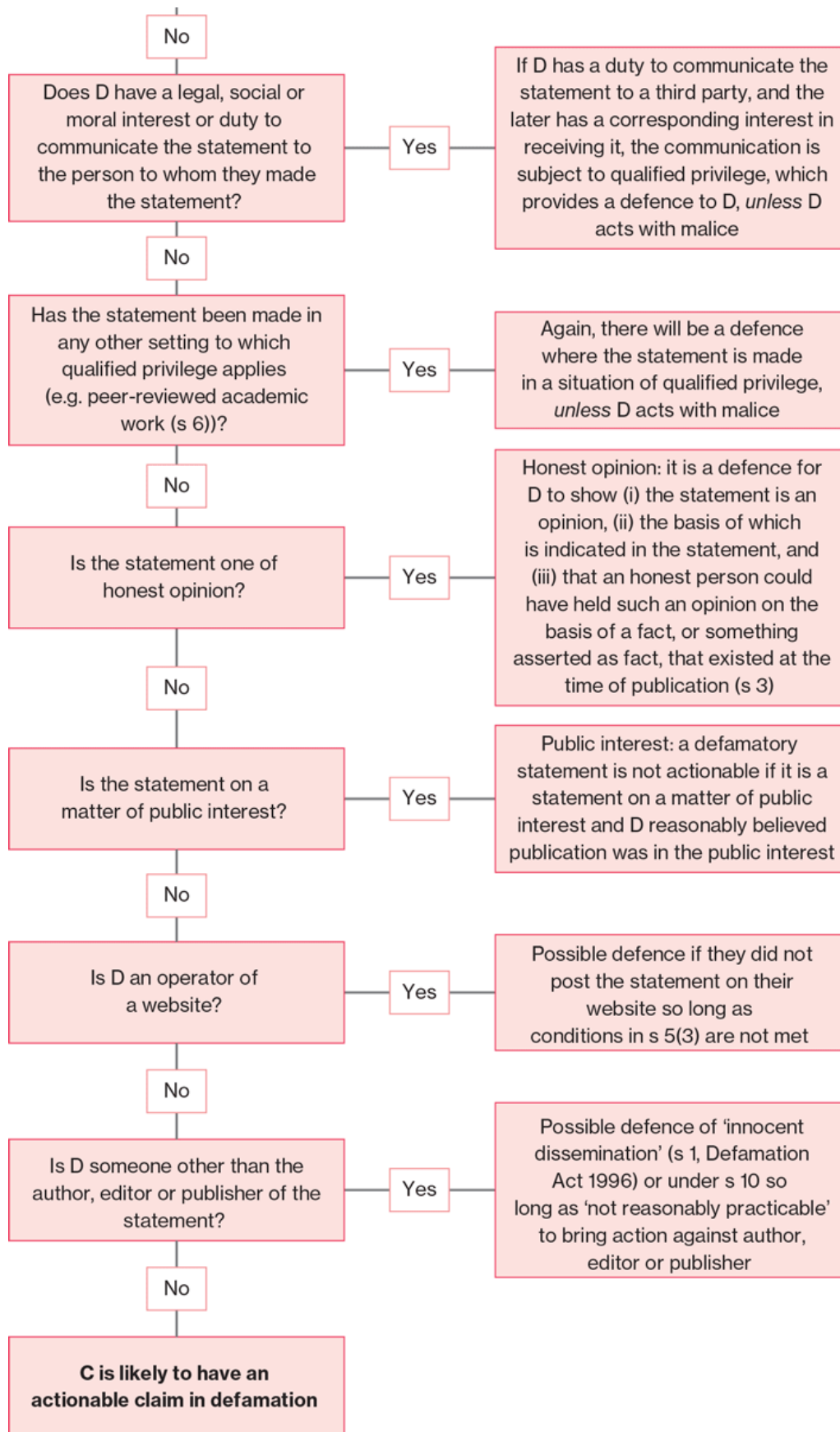
Explore the elements a claim and relevant defences using the interactive version of this decision tree <https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-chapter-17-interactive-decision-tree-17-1>.



## 17. Defamation



## 17. Defamation



**Decision Tree 17.1** Defamation claims and defences

## End-of-chapter questions

After reading the chapter carefully, try answering the questions which follow.

- 1 Who can and who cannot sue in defamation? Explain the reasons for this.
- 2 When will defendants who disseminate or host a defamatory statement made by another escape liability? Do you think this provides sufficient protection for victims of defamatory statements posted online?
- 3 The Defamation Act 2013 has done much to clarify and improve the balance between protecting an individual's reputation and the freedom of speech of others. Do you agree?

If you would like to know what we think, check the **answer guidance**  [<https://iws.oup.support.com/ebook/access/content/horsey9e-student-resources/horsey9e-chapter-17-answers-to-end-of-chapter-questions?options=showName>](https://iws.oup.support.com/ebook/access/content/horsey9e-student-resources/horsey9e-chapter-17-answers-to-end-of-chapter-questions?options=showName).

### Answering the problem question

Consider again the problem question at the start of this chapter. Now having read about the topic, **what would be your advice to the various parties?**

**Here are some pointers to get you started:**

- The headline clearly wasn't intended to refer to Maverick, but how would the reasonable reader interpret the headline and image?
- Does Maverick's statement about the ability of his colleagues 'appointed in the 1990s' refer to Raya?
- Has Kit's WhatsApp message caused, or is likely to cause, Maverick serious harm?

**If you need some more guidance:**

- See the **annotated version of the problem with issues and cases to consider**  [<https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-chapter-17-annotated-problem-question-interactive>](https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-chapter-17-annotated-problem-question-interactive).
- Check your answer against the **suggested outline answer**  [<https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-chapter-17-answers-to-problem-question>](https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-chapter-17-answers-to-problem-question).

### Further reading

In addition to the academic articles listed, the Inforrm blog ([www.inform.wordpress.com](http://www.inform.wordpress.com) <<http://www.inform.wordpress.com>>) is an excellent source of authoritative commentary on recent case law.

Barendt, Eric 'Libel and Freedom of Speech in English Law' [1993] Public Law 449

Collins, Matthew 'Reflections on the Defamation Act 2013, one year after Royal Assent' *Inforrm's blog* 25 April 2014

Dee, Juliet 'Fighting Back: Is Defamation Law a Double-Edged Sword for #MeToo Victims?' 55(2) First Amendment Studies 148

Erdos, David 'Serious Harm to Reputation Rights? Defamation in the Supreme Court' [2019] Cambridge Law Journal 510

Gibbons, Thomas 'Defamation Reconsidered' (1996) 16 Oxford Journal of Legal Studies 587

p. 538 Howarth, David 'Libel: Its Purpose and Reform' (2011) 74 Modern Law Review 845 ↵

McNamara, Lawrence *Reputation and Defamation* (OUP 2007)

Mullis, Alastair and Andrew Scott 'Something Rotten in the State of English Libel Law? A Rejoinder to the Clamour for Reform of Defamation' (2009) 14 Communications Law 173

Mullis, Alastair and Andrew Scott 'Tilting at Windmills: The Defamation Act 2013' (2014) 77 Modern Law Review 87

O'Callaghan, Patrick 'The Law of Defamation—Part 1 and Part II' in *Butterworths Common Law Series: The Law of Tort* (Butterworths 2014) chs 25 and 26

Price, James and Felicity McMahon (eds) *Blackstone's Guide to the Defamation Act 2013* (OUP 2013)

Additional suggestions for further reading can be found in this chapter's **web links** <<https://iws.oup.support.com/ebook/access/content/horsey9e-student-resources/horsey9e-chapter-17-web-links?options=showName>>.

### Notes

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<sup>1</sup> For information: Maverick is the name of the main character in the 2022 film *Top Gun: Maverick* ([www.imdb.com/title/tt1745960/](http://www.imdb.com/title/tt1745960/) <<http://www.imdb.com/title/tt1745960/>>). This information is not contained in the original message.

<sup>2</sup> Though some non-permanent forms of publication are treated as libel by virtue of various statutory provisions—e.g. radio and television (Broadcasting Act 1990, s 166) and public theatre performances (Theatres Act 1968, s 4).

<sup>3</sup> See e.g. *Griffin v North Cumbria Integrated Care NHS Foundation Trust* [2024] which involved a reference given over the telephone ('Judgment in rare slander trial' 5rb.com 8 February 2024).

<sup>4</sup> See e.g. Faulks Committee *Report of the Committee on Defamation* (Cmnd 5909, 1975) [91]; J M Kaye 'Libel or Slander: Two Torts or One?' (1972) 91 Law Quarterly Review 524.

- <sup>5</sup> Until the 2013 Act there were four exceptions to the need to prove special damage in cases of slander: where the statement imputed: (a) criminal conduct (*Webb v Beavan* [1883]); (b) that the claimant has a contagious disease (*Bloodworth v Gray* [1844]); (c) incompetence in business dealings (as clarified by the Defamation Act 1952, s 2); and (d) a lack of chastity in a woman (Slander of Women Act 1891, s 1). However, s 14 of the 2013 Act abolished the dated and potentially discriminatory (b) ('contagious diseases') and (d) ('lack of chastity in a woman') exceptions.
- <sup>6</sup> The most recent annual judicial statistics for 2023, published in July 2024, stated there were 250 defamation claims issued in 2023. It has been suggested that this is the result of a mis-categorisation by the Ministry of Justice and that the true figure is closer to 111 new cases ('Judicial Statistics, 2023: "A 60% decrease in issued defamation claims but doubts remain over the reliability of the figures"' *Inform's blog* 30 July 2024).
- <sup>7</sup> Tony Weir *An Introduction to Tort Law* (2nd edn OUP 2006) 176.
- <sup>8</sup> Patrick Wintor '“Laughing stock” libel laws to be reformed, says Nick Clegg' *The Guardian* 6 January 2011.
- <sup>9</sup> Matthew Collins 'Reflections on the Defamation Act 2013: One Year after Royal Assent' *Inform's blog* 25 April 2014. For a helpful overview and assessment of the Act ten years on, see Iain Wilson, Max Campbell, Tom Double and Percy Preston 'Defamation Act 2013: A summary and overview 10 years on' *Inform's blog* 30 December 2024.
- <sup>10</sup> You may find it helpful to refer to the annotated version of the Defamation Act 2013 (**section 17.10** You can also download this from the **online resources**).
- <sup>11</sup> Though he went on to say that where the company has suffered no financial loss, damages should be kept within modest bounds (at [27]).
- <sup>12</sup> As seen in *Brett Wilson LLP v Persons Unknown* [2015]; *Gubarev v Orbis Business Intelligence* [2020].
- <sup>13</sup> For some time now there have been calls for new legislation to 'stamp out' so-called SLAPPs (strategic lawsuits against public protection) which include but are not limited to defamation claims and which are increasingly being used by the super-rich to stifle legitimate reporting and debate. In November 2024, the justice minister, Heidi Alexander MP, confirmed that such legislation would not be introduced in the current parliamentary session. Of course, the use of the threat—and reality—of defamation (and other legal) actions is not new. See e.g. the so-called 'McLibel' trial, the longest running libel case in England, in which two environmental activists were sued by McDonald's over critical claims they had made in a six-page leaflet titled: 'What's wrong with McDonald's: everything they don't want you to know' ([www.mcspotlight.org](http://www.mcspotlight.org) <<http://www.mcspotlight.org>>A case study on the McLibel trial can be found in the **online resources**).
- <sup>14</sup> Ben Dowell 'McAlpine libel: 20 tweeters including Sally Bercow pursued for damages' *The Guardian* 23 November 2012; *McAlpine v Bercow* [2013] is discussed in **section 17.3.1**.
- <sup>15</sup> See e.g. Owen Bowcott 'Complaints to solicitors' regulator over libel demands from Galloway's lawyers' *The Guardian* 4 March 2015. Although there are other times when an MP's ability to bring defamation claims is right and proper. See e.g. Richard Burdon MP's successful claim—amounting to £30,000—against *The Sun* newspaper suggesting he had joined a band which 'delights in Nazi symbols' (at [1]) (*Burdon v News Group Newspapers* [2019]).
- <sup>16</sup> Though cf Gavin Phillipson 'London: the capital of libel tourism?' *The Guardian* 29 March 2010.
- <sup>17</sup> See e.g. Jason Donovan and Robbie Williams's successful claims against *The Face* magazine (in 1992) and *The People* newspaper (in 2005) over suggestions they were homosexual. In each case, the defamatory statement was not, it was argued, being called 'gay', but rather the implication of hypocrisy in the suggestion that they were lying to their

fans about their sexuality, discussed in Vincent Graff ‘Gay? Not gay? So what! Why should it be a matter for the libel lawyers?’ *The Independent*, 11 December 2005. See further Alexandros Antoniouin and Dimitris Akrivos ‘Homosexuality, Defamatory Meaning and Reputational Injury in English Law’ in Kirsty Horsey (ed) *Diverse Voices in Tort Law* (Bristol University Press 2024) 175.

<sup>18</sup> Compare e.g. *Kerr v Kennedy* [1942] 1 KB 409; *Liberace v Daily Mirror Newspapers* (1959) *The Times*, 17 and 18 June (discussed in Roy Greenslade ‘Liberace, the *Daily Mirror* and a libel trial fiasco ...’ *The Guardian* 12 June 2013) and *Youssouf v Metro-Goldwyn-Mayer Pictures Ltd* [1934].

<sup>19</sup> The case returned to the High Court in July 2022 (eight years after the articles were first published) where Nicklin J dismissed the newspaper’s public interest defence (see **section 17.6.3**) and ordered the publishers to pay £120,000 in damages (*Lachaux v Independent Print Ltd and others* [2021]). For an application of s 1(1) post-**Lachaux**, see Tom Double ‘Where are we now with serious harm? Understanding section 1 of the Defamation Act 2013’ *Inform’s Blog* 25 October 2023 and *Blake v Fox* [2024a] in which Collins Rice J found two tweets in which actor Laurence Fox had falsely called the claimants ‘paedophiles’ was ‘on the evidence, probabilities and facts of this case, seriously harmful, defamatory and baseless’ (at [166]). Both claimants were awarded £90,000 in damages and a permanent injunction (*Blake v Fox* [2024b]). The preliminary issues were determined for reasons set out in judgments of Nicklin J (*Blake v Fox* [2022b]) and the Court of Appeal (*Blake v Fox* [2023]).

<sup>20</sup> Each case will depend on its own facts. In *Dyson v MGN Ltd* [2023], the judge declined to find that the contested statement had caused serious harm despite being published in a national newspaper.

<sup>21</sup> *Charleston* might be considered an early example of ‘deep-fake’ imagery. Technological advances now mean that it is extremely difficult (if not impossible for the untrained viewer) to know that what they are viewing is not real. This is particularly prevalent in the context of image-based sexual abuse, where the images are often referred to as ‘fakeporn’. Such images are clearly defamatory (and in some instances criminal) (Rackley et al ‘Seeking Justice and Redress for Victim-Survivors of Image-Based Sexual Abuse’ (2021) 29 *Feminist Legal Studies* 293).

<sup>22</sup> **Stocker** predates the 2013 Act and so refers to the common law defence of ‘justification’ (as amended by s 5 of the Defamation Act 1952) which is abolished by s 2 of the 2013 Act which broadly reflects the same defence (discussed further in **section 17.6.1**).

<sup>23</sup> Which has since been replaced by s 2(3) of the Defamation Act 2013.

<sup>24</sup> See e.g. in the cases of the so-called ‘Black Cab Rapist’ (*DSD v The Commissioner of Police for the Metropolis* [2014] discussed in **section 6.3.1**) and Jimmy Savile.

<sup>25</sup> See e.g. BBC News ‘Rape social media posts: How speaking out got twin sisters sued’ 24 February 2021. In *Starr v Ward* [2015], a woman who said she was groped by comedian Freddie Starr in 1974 behind the scenes of Jimmy Savile’s *Clunk Click* TV show when she was 15 successfully defended a defamation claim brought by Starr against her. It was reported that Starr faced a £1 million costs bill and lost £300,000 from shows being cancelled over the allegations (BBC News ‘Freddie Starr loses groping defamation case’ 10 July 2015). See further Brett Wilson, ‘#MeToo, naming and shaming: a risky business?’ *Inform’s blog* 2 November 2017; Julie Bindel ‘Women who allege abuse mustn’t be silenced by rich men’s libel threats’ *The Guardian* 23 January 2019.

<sup>26</sup> The wealth of the claimant is important. In *Lee v Brown* [2022], a former partner unsuccessfully attempted to sue his former partner for comments she had made on Facebook stating that she was ‘repeatedly and consistently ... subjected by Mr Lee to serious abuse of a controlling and coercive nature throughout their cohabitation’ (at [25]).



While the comments were clearly defamatory, Lee, who represented himself, had not established that they had caused, or were likely to cause, ‘serious harm’. Collins Rice J continued: ‘It is notoriously difficult for a litigant in person, however informed and articulate, to bring a successful defamation action. That is because the law is detailed and complex, highly fact-sensitive, sometimes counter-intuitive, and contains traps for the inexperienced. It is an area of *expert* legal practice, daunting even for other legal professionals’ (at [31]). Had Lee been able to, or had chosen to, instruct counsel, he might well have been successful.

<sup>27</sup> Harriet Wistrich, Centre for Women’s Justice in Southall Black Sisters ‘Press Release: *Lachaux v Independent News Print Ltd and Another*’ (no date): **[www.southallblacksisters.org.uk/news/press-release-lachaux-v-independent-news-print-limited-and-another](http://www.southallblacksisters.org.uk/news/press-release-lachaux-v-independent-news-print-limited-and-another)** <<http://www.southallblacksisters.org.uk/news/press-release-lachaux-v-independent-news-print-limited-and-another>>.

<sup>28</sup> ‘Promotion and protection of the right to freedom of opinion and expression’ A/76/258, 30 July 2021, [22].

<sup>29</sup> Once the judge had held that a statement was capable of being defamatory *as a matter of law*, it was for a jury to decide whether it was *in fact* defamatory. The presumption in favour of a jury trial was removed by s 11 of the Defamation Act 2013 which states that a trial is to be ‘without a jury unless the court orders otherwise’. The circumstances in which a defamation case might be heard with a jury was considered in *Tim Yeo MP v Times Newspapers* [2014]. Refusing the application in the instant case, Walby J held that there were no ‘skills, knowledge, aptitudes or other attributes likely to be possessed by a jury which would make it better equipped than a judge to grapple with the issues that arise and may need to be tried’. Nor is it the case ‘that the verdict or judgment in this case could have consequences so profound for public life that it would be appropriate to involve a jury’. Indeed, the greater the public interest, the more need there was for the case to be heard by judge alone, ‘with the reasoned judgment that only such a mode of trial would bring. There are real risks of a jury verdict being unclear or misunderstood or both’ (at [53]). On this reasoning a jury trial in the near future seems unlikely. This is further underlined by Nicklin J’s refusal to allow for a jury trial as requested by actor Laurence Fox in *Blake v Fox* [2022a].

<sup>30</sup> See also discussion in *Monroe v Hopkins* [2017] at [44]–[59].

<sup>31</sup> Or even if the defendant had no knowledge of the defamatory statement at the time it was published. In *Monir v Wood* [2018], the former chairman on UKIP’s Bristol branch was liable for a defamatory tweet posted by the then Vice Chairman. It was no excuse to say that he had delegated responsibility for its Twitter account to him who in turn was acting as his ‘agent’.

<sup>32</sup> For a recent example, see Lena Durham’s post on BuzzFeed in which she apologises to the man mistakenly identified as her rapist after matching the pseudonym she used in her book *Not that Kind of Girl* (‘Why I choose to speak out’ 9 December 2014).

<sup>33</sup> What if, e.g. a man is wrongly identified in the local and national press as a rapist? In April 2014, it was reported that the police paid ‘substantial damages’ to a man who was wrongly identified as a rapist on the BBC News website and in the *Oxford Mail* newspaper. In this case, the police had supplied the press with the wrong photo, and so there was a straightforward claim against them (the case was settled). Following *O’Shea*, what do you think are the chances of a successful claim against the BBC and *Oxford Mail*? (Dominic Ponsford ‘Police pay substantial damages to man wrongly identified in the press as a rapist’ *Press Gazette* 22 April 2014.)

<sup>34</sup> Similarly, statements exchanged between *married* couples are not regarded as being published. One's spouse is not a third party. Insofar as there is good sense in allowing partners to be able to communicate as they wish without fear of legal consequences, so as to avoid 'disastrous results to social life' (*Wennhak v Morgan* [1888] at 639) this should apply to *all* partners, married or otherwise.

<sup>35</sup> Hugh Tomlinson 'Case Law: *Webb v Jones*, Facebook libel claimants beware!' *Inform's blog* 26 June 2021.

<sup>36</sup> See further *Monroe v Hopkins* (based on two tweets posted within a couple of hours of each other, and a further five within the next 24 hours which were assessed together) and *Webb v Jones* (where seven Facebook posts, within a thread running to 150 pages and 382 comments, were treated as separate publications).

<sup>37</sup> The action was ultimately struck out on the facts on the basis that the damage to the claimant's reputation was not sufficiently serious.

<sup>38</sup> To date, there have been no reported cases using a s 5 reflection. Wilson et al argue of the 'complicated and onerous' process which is 'probably unattractive to website operators who will often have no interest in the matter and/or be able rely on other substantive defences' (n9).

<sup>39</sup> **N9.**

<sup>40</sup> Also where the claimant has consented (either expressly or impliedly) to the publication of the defamatory material, this will be a defence (*Cookson v Harewood* [1932]).

<sup>41</sup> The Rehabilitation of Offenders Act 1974, s 8 provides a statutory exception to this. When referring to a spent conviction, the defendant must show both that it is true *and an absence of malice* in publishing the information (s 8(5)).

<sup>42</sup> The burden of proof is lower in civil cases as the claimant in *Coker v Nwkanma* [2021] learned to his cost. He sued his friend over an allegation that he had sexually assaulted a woman at the defendant's house. The judge found that 'on the balance of probabilities' (which while flexible in its *application*, the more serious the allegation or the more serious the consequences if the allegation is proved, 'the stronger must be the evidence before a court will find the allegation proved on the balance of probabilities' (at [14]) is a lower standard than the criminal standard of reasonable doubt) the allegation was true (at [57]). As Max Campbell notes: 'Saini J's observation about the apparent "flexibility" in the application of the civil standard of proof is a doubled-edged sword: whilst it means that a judge will be less quick to make findings of serious criminality, it also means that the reputational damage arising from such findings, if made, is worse (because the findings, whilst on the balance of probabilities, have expressly not been made lightly)' ('Case Law, *Coker v Nwkanma*, Search for vindication backfires, court finds serious sexual assault committed' *Inform's blog* 4 June 2021).

<sup>43</sup> Consider again the BBC Radio 5 presenter's comment in the examples at the beginning of the chapter. His statement is clearly defamatory. But could he rely on the defence of truth? This will depend on how the specific allegations are interpreted.

<sup>44</sup> In June 2022, a jury in Virginia awarded Depp compensatory damages of US\$10 million, as well as punitive damages for defamatory statements made by Amber Heard in the *Washington Post*. In December 2022, it was reported that Amber Heard had agreed to a legal settlement with Depp. For a detailed comparison of the UK and US cases, see Matthew Scott '*Depp v Heard*: Why did an American jury reach a different decision than the English judge?' *BarristerBlog* 2 June 2022.

<sup>45</sup> Refuge responds to Johnny Depp losing his libel case, 2 November 2020.

<sup>46</sup> Tamsin Allen and Daniel Shaw ‘Case Comment: *Depp v NGN*—an analysis of the judgment’, Bindmans website, 14 December 2020.

<sup>47</sup> These comments must now be read in light of the Court of Appeal’s comprehensive reversal of Jay J’s decision: ‘In our view, the Judge not only seriously transgressed the core principle that a judge remains neutral during the evidence, but he also acted in a manner which was, at times, manifestly unfair and hostile to the claimant ... the nature, tenor and frequency of the Judge’s interventions were such as to render this libel trial unfair’ (*Serafin v Malkiewicz and others* [2019] at [119]). The case was ultimately considered by the Supreme Court, which agreed with the Court of Appeal in relation to Jay J’s treatment of the claimant but found, ‘with a degree of embarrassment in relation to respected colleagues’ (at [78]), the Court of Appeal to have wrongly applied the law in relation to s 4 of the Act (see further **section 17.6.3**) and remitted the case for a full retrial (rather than simply on the determination of costs as ordered by the Court of Appeal) (*Serafin v Malkiewicz and others* [2020]).

<sup>48</sup> See e.g. collection of BBC News stories tagged as ‘Wagatha Christie trial’: [www.bbc.co.uk/news/topics/cxy7xky2047t](https://www.bbc.co.uk/news/topics/cxy7xky2047t) <<https://www.bbc.co.uk/news/topics/cxy7xky2047t>>; ‘Rooney v Vardy: The Breakdown’, a podcast hosted by Coleen Rooney’s lawyers, Paul Lunt and Jamie Hurworth from Brabners LLP and Nick Curtis ‘Vardy v Rooney: The Wagatha Christie Trial at Wyndham’s Theatre review—hilarious and gripping’ *Evening Standard* 23 November 2022 You may find it interesting to watch BBC journalist, Ros Atkins, ‘On the Wagatha Christie Trial’, recorded before the judgment was handed down, which details how the case unfolded in the High Court..

<sup>49</sup> Vardy will, of course, also have to pay her own legal costs. Lawyers for Vardy and Rooney are set to return to court to determine costs in 2025; in the meantime Vardy has been ordered to pay Rooney £100,000 towards the money she owes her (Jessica Rawnsley ‘Vardy ordered to pay £100,000 towards Rooney costs’ *BBC News* 9 October 2024).

<sup>50</sup> David Allen Green ‘What Rebekah Vardy got wrong’ *Prospect Magazine* 2 August 2022.

<sup>51</sup> Qualified privilege was often relied on by the media in the form of the so-called **Reynolds** defence. As we will see in **section 17.6.3**, s 4 abolishes the common law **Reynolds** defence; however, the defence of qualified privilege extends beyond the category of privilege recognised in **Reynolds**.

<sup>52</sup> This has been used by MPs and members of the House of Lords to circumvent reporting restrictions imposed by the courts. For example, in October 2018, Lord Hain relied on privilege in order to name Sir Philip Green as the businessman at the centre of an injunction linked to allegations known as the ‘British #MeToo scandal’. (See further Jessica Elgot ‘Sir Philip Green named as man at heart of “UK #MeToo scandal”’ *The Guardian* 26 October 2018.)

<sup>53</sup> For an application of the defence of qualified privilege, see *ABC (A Mother) v The Chief Constable of West Yorkshire Police* [2017] where it was held that a defamatory statement made in the context of an allegation of child sexual abuse was privileged. The police had a duty to communicate with Social Services who have a corresponding duty to receive it. In any event, the case failed on the basis that the claimant had failed to prove the publication of the defamatory statement had, or was likely to, cause the claimant serious harm.

<sup>54</sup> Leaving open the question as to whether the defence would have been successful in **Singh** (cf James Price and Felicity McMahon (eds) *Blackstone’s Guide to the Defamation Act 2013* (OUP 2013) 102).

<sup>55</sup> See e.g. *Serafin v Malkiewicz* [2020] in which the Supreme Court, approving the decision of the Court of Appeal in **Economou v de Freitas**, emphasised the material difference between the **Reynolds** defence and that in s 4 and that they should not be equated, nor should the **Reynolds** factors be used as a checklist in the context of s 4:

... the Bill, as introduced, *did* in effect make reference to the **Reynolds** factors but later they were deliberately omitted. Subject to what some may regard as only a quibble, the observations of Sharp LJ [in **Economou v de Freitas**] are valid. The quibble, if such it be, relates to her use of the word ‘checklist’. I suggest that a check list is a list of factors to which reference ought to be made, in particular in order to check whether a preliminary conclusion should be confirmed. ... But, in removing the listed matters from the Bill and in proceeding to substitute a reference to all the circumstances, Parliament made clear its intention that the **Reynolds** factors, upon which the list had been based, were not to be used as a check list. Even if, at the time of the decision in the **Reynolds** case, it was appropriate to describe the factors identified by Lord Nicholls as a check list, it is clearly inappropriate so to regard them in the context of the statutory defence. But, as Sharp LJ proceeded to explain, that is not to deny that one or more of them may well be relevant to whether the defendant’s belief was reasonable within the meaning of subsection (1)(b). (at [69])

<sup>56</sup> Explanatory Notes at [29].

<sup>57</sup> Price and McMahon **n54** 75.

<sup>58</sup> This had not been raised by the defendant—he had received inadequate legal advice. The judge adjourned the claimants’ summary judgment application, to enable him to take advice and, if so advised, raise the defence at a later hearing. The defendant chose not to do this. He was later ordered to pay £80,000 in damages and the claimant’s costs.

<sup>59</sup> This case is another example of the extent to which bringing a defamation claim can be a double-edged sword. As Oliver Lock notes:

Being accused of a sexual crime is, of course, one of the most damaging accusations that can be made against an individual and, if that allegation is false, he or she will want to do all in their power to fight it. However, this case ... should be a warning against taking such robust action when doing so may harm your reputation further. In pursuing a libel case against the Defendant, Mr Economou has found his name at the centre of a widely publicised libel judgment. The particular sensitivities of this case also called for thoughtfulness when Mr Economou was deciding how to deal with the allegations that had been made against him. Perhaps it would have been more prudent to take action against the publishers of the story, rather than a grieving father.

<sup>4</sup> (‘Case Law: *Economou v de Freitas*, Is it interesting? New judgment considers the scope of the “public interest” defence’ *Inform’s blog* 28 September 2016.)

<sup>60</sup> Though they will still be held to some standards. In *Riley v Sivier* [2022], Rachel Riley won £50,000 over claims she was a ‘serial abuser’ and had bullied a teenager. While the defendant was held to have published on a matter of public interest, and to have believed it to be in the public interest, his belief was:

‘manifestly unreasonable’ ... he failed to make such enquiries as were reasonably required in the circumstances; he had no reasonable grounds for making the factual allegations that he did, which misrepresented the evidential picture; and the article was wholly unbalanced. (at [163], [180])

<sup>4</sup> Sivier is reported to have appealed.

- <sup>61</sup> See further and compare *Doyle v Smith* [2018] and discussion in Jacob Rowbottom ‘Citizen journalists, standards of care, and the public interest defence in defamation’ *Inform’s blog* 18 December 2018.
- <sup>62</sup> The trial judge also found that the tweet did not cause serious harm to Mr Banks’s reputation. This was upheld by the Court of Appeal (at [10]).
- <sup>63</sup> In May 2023, Cadwalladr was ordered to pay legal costs of around £1.2 million to Banks.
- <sup>64</sup> In *Riley v Murray*, the Court of Appeal confirmed that where the opinion defended is based on a single specific fact, the s 3 defence will fail if that fact is untrue (at [59]).
- <sup>65</sup> See e.g. Archie Bland ‘Julie Burchill agrees to pay Ash Sarkar “substantial damages” in libel case’ *The Guardian*, 16 March 2021.
- <sup>66</sup> BBC News ‘McCanns welcome papers’ apology’ 19 March 2008.
- <sup>67</sup> Press Association ‘Riot Good Samaritan wins poster libel payout from Met police’ *The Guardian* 3 May 2013.
- <sup>68</sup> ‘Melania Trump—An Apology’ *Daily Telegraph* 26 January 2019.
- <sup>69</sup> Peter Walker ‘Tory peer pays damages after alleging University Challenge mascot was antisemitic’ *The Guardian* 6 March 2024.
- <sup>70</sup> Harry Cockburn ‘Katie Hopkins’ legal bills to top £300,000 after losing High Court battle to Jack Monroe’ *The Independent* 10 March 2017. In January 2018, Hopkins’s application for appeal was refused and in September 2018 she was reported as filing for an insolvency agreement to avoid bankruptcy.
- <sup>71</sup> The judge may also choose to award nominal damages. In *Wright v McCormack* [2022], the judge awarded just £1 to the claimant (a computer scientist and ‘self-proclaimed inventor of bitcoin’) in a defamation case against a blogger who had accused him of fraud. Though he won his case, his damages were reduced on the basis that ‘he advanced a deliberately false case and put forward deliberately false evidence until days before trial’ (at 149). The award was upheld on appeal (*Wright v McCormack* [2023]).
- <sup>72</sup> The perpetrator was subsequently expelled from school and received a caution for common assault.
- <sup>73</sup> Yaxley-Lennon declared himself bankrupt before the trial. In October 2024, he was jailed for 18 months for contempt of court in relation to ten breaches of a High Court order relating to the case.
- <sup>74</sup> See further and compare the award of ‘top bracket’ damages (£185,000) in *Shakil-Ur-Rahman v ARY Network Ltd* [2016] with the award of just £10 (reflecting the *claimant’s* ‘disgraceful’ behaviour before and during the litigation) in *Flymenow Ltd v Quick Air Jet Charter GmbH* [2016].

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